

Jurisdiction: Texas (State & Fed.)

Question

1. Is retaliation under the Fair Housing Act treated as a continuing violation when the retaliatory conduct persists over time or causes ongoing harm?

Retaliation under the Fair Housing Act (FHA) can be treated as a continuing violation when the retaliatory conduct persists over time or causes ongoing harm. The application of the continuing violation doctrine to FHA claims has been recognized in case law, particularly when the retaliatory conduct constitutes an ongoing unlawful practice rather than discrete acts of discrimination.

Application of the Continuing Violation Doctrine to the Fair Housing Act

The Fifth Circuit has applied the continuing violation doctrine in Title VII discrimination cases, and courts have extended this doctrine to claims under the FHA due to the strong similarities in language, design, and purposes between the two statutes. In [Petty v. Portofino Council of Coowners, Inc.](#), the court noted that the continuing violation doctrine is appropriate for FHA claims, citing the Fifth Circuit's application of the doctrine in Title VII cases where there is "an organized scheme leading to and including a present violation, such that it is the cumulative effect of the discriminatory practice, rather than any discrete occurrence, that gives rise to the cause of action" ([Petty v. Portofino Council of Coowners, Inc.](#), 702 F.Supp.2d 721 (2010)) [1].

The Supreme Court in [Havens Realty Corp. v. Coleman](#) further clarified the application of the continuing violation doctrine under the FHA. The Court held that when a plaintiff challenges an unlawful practice that continues into the limitations period, the complaint is timely if filed within 180 days of the last occurrence of that practice. The Court emphasized that statutes of limitations are designed to prevent stale claims, but this concern is mitigated when the violation is ongoing. The cumulative effect of the discriminatory practice, rather than discrete occurrences, gives rise to the cause of action ([Havens Realty Corp. v. Coleman](#), 455 U.S. 363 (1982)) [2].

Distinction Between Continuing Violations and Discrete Acts

Courts have distinguished between continuing violations and discrete acts of discrimination. In [Ortega v. Housing Authority of City of Brownsville](#), the court declined to apply the continuing violation doctrine to separate actions denying housing assistance, as these were considered discrete acts rather than a continuing violation. The court emphasized that the doctrine applies when actions are not complete on a given day and are part of an ongoing pattern or practice ([Ortega v. Housing Authority of City of Brownsville](#), 572 F.Supp.2d 829 (2008)) [3].

Similarly, in [Burrell v. Crown Cent. Petroleum, Inc.](#), the court explained that under the "separate repeated" continuing violation theory, each violation begins a new limitations period, but only incidents within the limitations period are actionable. This theory does not revive time-barred conduct or connect it to current claims ([Burrell v. Crown Cent. Petroleum, Inc.](#), 255 F.Supp.2d 591 (2003)) [4]. The Fifth Circuit has also held that the continuing violation doctrine requires the same type of discriminatory acts to occur both inside and outside the limitations period, forming an organized scheme leading to a present violation ([Price v. Jefferson County](#), 470 F.Supp.2d 665 (2006)) [5].

Retaliation Claims Under the Fair Housing Act

Retaliation claims under the FHA are analyzed under the same standards as retaliation claims under Title VII and other employment discrimination statutes. To state a claim for retaliation under the FHA, a plaintiff must demonstrate that (1) they engaged in an activity protected by the FHA, (2) they were subjected to an adverse action by the defendant, and (3) a causal connection exists between the protected activity and the adverse action. Courts may consider factors such as temporal proximity between the protected activity and the retaliatory conduct to establish causation ( [Chavez v. Aber](#), 122 F.Supp.3d 581 (2015)) [6].

The FHA explicitly prohibits retaliation against individuals for making a complaint, testifying, assisting, or participating in any manner in a proceeding under the Act. Retaliatory conduct includes actions such as coercion, intimidation, threats, or interference with the exercise or enjoyment of rights protected by the FHA ( [24 C.F.R. § 100.400](#)) [7].

Conclusion on Continuing Violations in FHA Retaliation Claims

Retaliation under the FHA can be treated as a continuing violation when the conduct constitutes an ongoing unlawful practice that persists over time or causes cumulative harm. Courts have applied the continuing violation doctrine to FHA claims, recognizing the similarity in purpose and language between the FHA and Title VII. However, the doctrine does not apply to discrete acts of discrimination, which are independently actionable and subject to their own limitations periods. The determination of whether retaliatory conduct constitutes a continuing violation depends on whether the actions are part of an organized scheme or ongoing practice that extends into the limitations period ([Price v. Jefferson County](#), 470 F.Supp.2d 665 (2006)) [5].

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. [Petty v. Portofino Council of Coowners, Inc.](#)

United States District Court, S.D. Texas, Corpus Christi Division. • March 12, 2010 • 702 F.Supp.2d 721 • 2010 WL 918740

"...I. Statute of Limitations for Plaintiffs' Fair Housing Act and Intention Infliction of Emotional Distress Claims. The Fifth Circuit applies the continued violations doctrine in Title VII discrimination cases where there is "an organized scheme leading to and including a present violation, such that it is the cumulative effect of the discriminatory practice, rather than any discrete occurrence, that gives rise to the cause of action." See *Huckabay v. Moore*, 142 F.3d 233, 239 (5th Cir.Tex.1998); see also *Berry v. Bd. Of Supervisors of L.S.U.*, 715 F.2d 971, 981 (5th Cir.1983). Given the "strong similarities between the language, design, and purposes of Title VII and the Fair Housing Act," it is appropriate to apply the continued violation doctrine to Plaintiffs' Fair Housing Act claims. See *Holt v. JTM Indus.*, 89 F.3d 1224, 1229 (5th Cir.1996) (applying Title VII case law to interpret language in the Fair Housing Act)...."

"...Given strong similarities between language, design, and purposes of Title VII and Fair Housing Act (FHA), it is appropriate to apply continued violation doctrine to FHA claims. Civil Rights Act of 1964, S 701 et seq., 42 U.S.C.A. S 2000e et seq.; Fair Housing Act, S 801 et seq., 42 U.S.C.A. S 3601 et seq...."

"...V. Conclusion. (6) Fair Housing Act claims based on events that occurred before May 8, 2007 which are offered as evidence of continued violations of the Fair Housing Act;..."

2. Havens Realty Corp. v. Coleman

Supreme Court of the United States • February 24, 1982 • 455 U.S. 363 • 102 S.Ct. 1114

"...IV. We agree with the Court of Appeals that for purposes of S 812(a), a "continuing violation" of the Fair Housing Act should be treated differently from one discrete act of discrimination. Statutes of limitations such as that contained in S 812(a) are intended to keep stale claims out of the courts. See Chase Securities Corp. v. Donaldson, 325 U.S. 304, 314, 65 S.Ct. 1137, 1142, 89 L.Ed. 1628 (1945). Where the challenged violation is a continuing one, the staleness concern disappears. Petitioners' wooden application of S 812(a), which ignores the continuing nature of the alleged violation, only undermines the broad remedial intent of Congress embodied in the Act, see Jones v. Alfred H. Mayer Co., 392 U.S. 409, 417, 88 S.Ct. 2186, 2191, 20 L.Ed.2d 1189 (1968). Cf. Zipes v. Trans World Airlines, Inc., 455 U.S. 398, 102 S.Ct. 1127, 71 L.Ed.2d 234. Like the Court of Appeals, we therefore conclude that where a plaintiff, pursuant to the Fair Housing Act, challenges not just one incident of conduct violative of the Act, but an unlawful practice that continues into the limitations period, the complaint is timely when it is filed within 180 days of the last asserted occurrence of that practice...."

"...Where plaintiff, pursuant to Fair Housing Act, challenges not just one incident of conduct violative of Act, but unlawful practice that continues into limitations period, complaint is timely when it is filed within 180 days of last asserted occurrence of that practice. Civil Rights Act of 1968, S 812(a) as amended 42 U.S.C.A. S 3612(a)...."

"...IV. Petitioners argue that even if respondents do have standing to sue under the Fair Housing Act, their claims are time-barred under S 812(a) of the Fair Housing Act, 42 U.S.C. S 3612(a). That section requires that a civil suit be brought within 180 days after the alleged occurrence of a discriminatory housing practice. As petitioners note, although five different specific incidents allegedly in violation of the Fair Housing Act are detailed in the complaint, the four involving Coleman occurred more than 180 days before the complaint was filed, and the fifth, which was within 180 days of filing, involved only Coles, whose claims are already the subject of a consent order entered by the District Court. The Court of Appeals, adopting a "continuing violation" theory, held that because the Coles incident fell within the limitations period, none of the claims was barred...."

3. Ortega v. Housing Authority of City of Brownsville

United States District Court, S.D. Texas, Brownsville Division. • January 03, 2008 • 572 F.Supp.2d 829 • 2008 WL 3583489

"...B. Continued Violation. As the Supreme Court explained in Morgan, the continued violations doctrine applies where actions taken by a defendant are not complete on a given day. 536 U.S. at 114, 122 S.Ct. 2061. In comparison, denials of promotion or transfer are distinct actions and do not warrant the application of the doctrine. Id. Therefore, application of the continued violations doctrine to Defendant's separate actions denying Plaintiff housing assistance would be inconsistent with the rationale behind the doctrine. In 2004, when Plaintiff's voucher expired and Defendant did not grant year-long housing assistance, Defendant committed a discrete act of discrimination based on familial status. Although it happened again two years later, the doctrine of continue

violations does not apply. The events are simply two discrete acts, each independently actionable. As such, the Court will not extend the starting date of the statute of limitations to 2006...."

"...B. Continued Violation. In the alternative, Plaintiff contends that the statute of limitations did not begin until 2006. Plaintiff asserts that because Defendant maintained the same policy of requiring legal guardianship for minors and subsequently in 2006 Plaintiff was again denied a voucher, Defendant's conduct constituted a continued violation. Dkt. No. 19, at 26. The Fifth Circuit has not yet applied the doctrine of continued violations to violations under the FHA. However, the crux of this case is discrimination and the Fifth Circuit has consistently applied the continued violations doctrine in other discrimination contexts. See *Berry v. Bd. of Supervisors of L.S.U.*, 715 F.2d 971, 981 (5th Cir.1983). Therefore, this Court will consider the application of the doctrine in this context...."

4. **Burrell v. Crown Cent. Petroleum, Inc.**

United States District Court, E.D. Texas, Beaumont Division. • April 02, 2003 • 255 F.Supp.2d 591 • 2003 WL 1785771

"...VI. Statute of Limitations Under Title VII and S 1981 and the Continuing Violation Doctrine. A second variation of this first application of the doctrine is referred to as a "separate repeated" continuing violation. This type of continuing violation occurs when "an initial violation, outside the statute of limitations, is repeated later; in this case, each violation begins the limitations period anew, and recovery may be had for at least those violations that occurred within the period of limitations." *Hendrix*, at 1103. These violations are considered separate and distinct acts of discrimination. Although this is referred to as an application of the continuing violation doctrine, it does not actually revive or connect any time barred discrimination or allow the barred conduct to be a basis for a discrimination claim. Under this theory, a plaintiff is only allowed to complain of incidents within the full limitations period preceding the filing of the complaint. See *Perez v. Laredo Junior Coll.*, 706 F.2d 731, 733-34 (5th Cir.1983)...."

5. **Price v. Jefferson County**

United States District Court, E.D. Texas, Beaumont Division. • September 20, 2006 • 470 F.Supp.2d 665 • 2006 WL 3933330

"...b. Continuing Violation Theory. "The doctrine ' "requires the same type of discriminatory acts to occur both inside and outside the limitations period," such that a valid connection exists between them.' " *Felton*, 315 F.3d at 485 (emphasis in original) (quoting *Celestine v. Petroleos de Venezuela SA*, 266 F.3d 343, 352 (5th Cir.2001) (quoting *Estate of Martineau v. ARCO Chem. Co.*, 203 F.3d 904, 913 (5th Cir.2000))). "Although there is no definitive standard for what constitutes a continuing violation, the plaintiff must demonstrate more than a series of discriminatory acts. (She) must show an organized scheme leading to and including a present violation." *Huckabay v. Moore*, 142 F.3d 233, 239 (5th Cir.1998); see *Celestine*, 266 F.3d at 352; *Berry v. Board of Supervisors*, 715 F.2d 971, 981 (5th Cir.1983), cert. denied, 479 U.S. 868, 107 S.Ct. 232, 93 L.Ed.2d 158 (1986). "(I)t is the cumulative effect of the discriminatory practice, rather than any discrete occurrence, that gives rise to the cause of action." *Huckabay*, 142 F.3d at 239; see *National R.R. Passenger Corp. v. Morgan*, 536 U.S. 101, 118, 122 S.Ct. 2061, 153 L.Ed.2d 106 (2002); *Messer*, 130 F.3d at 135; *Glass*, 757 F.2d at 1561. "The end goal of the continuing violation theory is to 'accommodate plaintiffs who can show that there has been a pattern or policy of discrimination continuing from outside the limitations period into the statutory limitations period' " and then " 'all of the discriminated acts committed as part of this pattern or policy can be considered timely.' " *Pegram*

v. Honeywell, Inc., 361 F.3d 272, 279 (5th Cir.2004) (quoting Celestine, 266 F.3d at 352); see also Yerby v. University of Houston, 230 F.Supp.2d..."

6. **Chavez v. Aber**

United States District Court, W.D. Texas, El Paso Division. • August 08, 2015 • 122 F.Supp.3d 581 • 2015 WL 4724807

"...To state a claim for retaliation under Fair Housing Act (FHA), a plaintiff must demonstrate that (1) he engaged in an activity that the FHA protects, (2) he was subjected to an adverse action by the defendant, and (3) a causal connection exists between the protected activity and the adverse action. Fair Housing Act, S 818, 42 U.S.C.A. S 3617...."

"...Retaliation claims brought pursuant to Fair Housing Act (FHA) are analyzed under same standards that are applied to retaliation claims brought under Title VII and other employment discrimination statutes. Civil Rights Act of 1964, S 701 et seq., 42 U.S.C.A. S 2000e et seq.; Fair Housing Act, S 818, 42 U.S.C.A. S 3617...."

"...Protected activities, for purposes of a retaliation claim under Fair Housing Act (FHA), include the request for a reasonable accommodation for handicapped persons. Fair Housing Act, SS 804(f)(3)(B), 818, 42 U.S.C.A. SS 3604(f)(3)(B), 3617...."

7. **§ 100.400 Prohibited interference, coercion or intimidation.**

24 CFR § 100.400

"...(a) This subpart provides the Department's interpretation of the conduct that is unlawful under section 818 of the Fair Housing Act. (b) It shall be unlawful to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of that person having exercised or enjoyed, or on account of that person having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by this part. (c) Conduct made unlawful under this section includes, but is not limited to, the following: (1) Coercing a person, either orally, in writing, or by other means, to deny or limit the benefits provided that person in connection with the sale or rental of a dwelling or in connection with a residential real estate-related transaction because of race, color, religion, sex, handicap, familial status, or national origin. (2) Threatening, intimidating or interfering..."

"...(c) Conduct made unlawful under this section includes, but is not limited to, the following: (5) Retaliating against any person because that person has made a complaint, testified, assisted, or participated in any manner in a proceeding under the Fair Housing Act.6) Retaliating against any person because that person reported a discriminatory housing practice to a housing provider or other authority...."

8. **Dews v. Town of Sunnyvale, Tex.**

United States District Court, N.D. Texas, Dallas Division. • August 01, 2000 • 109 F.Supp.2d 526 • 2000 WL 1159244

"...Complaint of ongoing violations, when filed under Fair Housing Act, is timely if filed within 180 days of last asserted occurrence of unlawful practice. Civil Rights Act of 1968, S 813(a), as amended, 42 U.S.C.A. S 3613(a). ..."

"...B. Statute of Limitations. Defendant attempts to win on the same statute of limitations argument previously raised in its motion for summary judgment and rejected by this Court in its Memorandum Opinion and Order entered May 2, 1989, and it fares no better this second time. As explained in that Opinion, the Supreme Court's opinion in *Havens Realty Corp. v. Coleman* held that a complaint of ongoing violations, when filed under the Fair Housing Act, is timely if filed within 180 days of the last asserted occurrence of an unlawful practice. See *Havens*, 455 U.S. 363, 380-82, 102 S.Ct. 1114, 71 L.Ed.2d 214 (1982). Here, Plaintiffs have alleged and shown ongoing violations beginning as far back as 1953 and continuing to the present day. Their claims of housing discrimination in violation of the Fair Housing Act are therefore timely made...."

9. **Texas v. Crest Asset Management, Inc.**

United States District Court, S.D. Texas, Houston Division. • February 29, 2000 • 85 F.Supp.2d 722 • 2000 WL 249254

"...As to retaliation claim under Fair Housing Act (FHA), if there is no direct evidence of retaliation, plaintiff bears burden of proving that defendant's actions were motivated by considerations prohibited by statute. Civil Rights Act of 1968, S 818, as amended, 42 U.S.C.A. S 3617...."

"...Once plaintiff in Fair Housing Act (FHA) action presents direct evidence of retaliation, burden of proof shifts to defendant to show that same adverse housing decision would have been made regardless of retaliatory motive. Civil Rights Act of 1968, S 818, as amended, 42 U.S.C.A. S 3617...."

10. **Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.**

United States District Court, W.D. Texas, Austin Division. • June 23, 2020 • 468 F.Supp.3d 800 • 2020 WL 3440569

"...To state a claim for retaliation under section of Fair Housing Act (FHA) making it unlawful to coerce, intimidate, threaten, or interfere with any person in exercise or enjoyment of any right separately protected by FHA, a plaintiff must demonstrate that (1) he engaged in an activity that the FHA protects; (2) he was subjected to an adverse action by the defendant; and (3) a causal connection exists between the protected activity and the adverse action. 42 U.S.C.A. S 3617...."

"...In considering whether a defendant's actions were retaliatory, for purposes of provision of Fair Housing Act (FHA) making it unlawful to coerce, intimidate, threaten, or interfere with any person in exercise or enjoyment of any right separately protected by FHA, a court may consider whether the temporal proximity between the request for an accommodation and the defendant's allegedly retaliatory behavior is sufficient to state that a causal connection exists between the protected activity and the adverse action. 42 U.S.C.A. S 3617...."

"...Retaliation claims brought pursuant to provision of Fair Housing Act (FHA) making it unlawful to coerce, intimidate, threaten, or interfere with any person in exercise or enjoyment of any right separately protected by FHA are analyzed under the same standards that are applied to retaliation claims brought under Title VII and other employment discrimination statutes. Civil Rights Act of 1964, S 701 et seq., 42 U.S.C.A. S 2000e et seq.; 42 U.S.C.A. S 3617...."

11. **Ryals v. American Airlines, Inc.**

United States Court of Appeals, Fifth Circuit. • January 27, 2014 • 553 Fed.Appx. 402 • 2014 WL 279756

"...I. Whether the district court erred in denying the application of the continuing violation doctrine, thus excluding acts that occurred more than 300 days before Appellant's initial complaint to the EEOC? .II. Whether the admissible evidence establishes a genuine issue of material fact from which a jury could conclude that Appellant suffered a violation of the law?. However, this continuing violation doctrine is limited as follows: First, the plaintiff must demonstrate that the "separate acts" are related, or else there is no single violation that encompasses the earlier acts. Second, the violation must be continuing; intervening action by the employer, among other things, will sever the acts that preceded it from those subsequent to it, precluding liability for preceding acts outside the filing window. Third, the continuing violation doctrine is tempered by the court's equitable powers, which must be exercised to "honor Title VII's remedial purpose 'without negating the particular purpose of the filing requirement.'"

"..."

12. Piraino v. U.S. Postal Service

United States District Court, E.D. Texas, Beaumont Division. • October 08, 1999 • 69 F.Supp.2d 889 • 1999 WL 825276

"...C. Continuing Violation Doctrine. There are some cases that imply that a timely claim can be based on a "separate repeated" violation, even when a plaintiff had sufficient knowledge of discrimination to file a claim upon discovering the initial act. But those cases also seem to require that the repeated act be a result of a formal and continuously maintained illegal employment practice that caused the initial violation and the repeated violations. See Perez, 706 F.2d at 733-34 ("plaintiff must establish that the unconstitutional or illegal act was a part of 'standard operating procedure,' a fixed and continuing practice.") (citation omitted); see also Roberts v. North Am. Rockwell, 650 F.2d 823, 826-27 (6th Cir.1981) (holding that defendant did not have to file suit when she was initially discriminated against because the limitations period did not begin to run as long as an ongoing express policy of not hiring women was in effect) (cited with approval in Perez, 706 F.2d at 734)."

13. § 819.153. Investigation of a Complaint

40 TX ADC § 819.153

"...(e) The notice to a respondent shall include, but not be limited to, the following: (6) Instruction that retaliation against any person because he or she made a complaint or testified, assisted, or participated in an investigation, conciliation, or an administrative proceeding under this chapter is a discriminatory housing practice that is prohibited under the Texas Fair Housing Act;..."

"...(a) Upon the acceptance of a complaint under this chapter, CRD shall initiate an investigation. The CRD director may initiate an investigation to determine whether a complaint should be filed under this chapter and the Texas Fair Housing Act, Subchapter E. Such investigations shall be conducted in accordance with the procedures set forth in this chapter. CRD also may invite the parties to participate in a voluntary mediation program in an effort to conciliate the dispute. (b) The CRD director shall determine the scope and nature of the investigation within the context of the allegations set forth in the complaint. (c) At all reasonable times in the complaint investigation, the CRD director shall have access to: (1) necessary witnesses for examination under oath or affirmation; and (2) records, documents, and other information relevant to the investigation of alleged violations of the Texas Fair Housing Act, for inspection and copying. (d)..."

14. Lopez v. Kempthorne

United States District Court, S.D. Texas, Houston Division. • January 14, 2010 • 684 F.Supp.2d 827 • 2010 WL 174889

"...d. Hostile Work Environment. Thus there are three restrictions on the continuing violation doctrine: plaintiff must show that (1) the different acts are related ; (2) the violation must be continuing, and an intervening action by the employer will sever the prior actions from those that came after it and bar liability for prior acts outside the filing window; and (3) the court may use its equitable powers to temper the continuing violation doctrine to "honor Title VII's remedial purpose 'without negating the particular purpose of the filing requirement.'" Stewart, 586 F.3d at 328, citing Morgan, 536 U.S. at 120, 122 S.Ct. 2061, quoting Zipes v. Trans World Airlines, Inc., 455 U.S. 385, 398, 102 S.Ct. 1127, 71 L.Ed.2d 234 (1982). With respect to the first prong, relatedness, various acts may be sufficiently "related" to earlier ones to constitute a single "practice" for purposes of 42 U.S.C. S 2000e-5(e)(1) if the incidents "involved the same type of harassment and were perpetrated by the same manager." Stewart, 586 F.3d at 329, citing Morgan, 536 U.S. at 120, 122 S.Ct. 2061. With respect to the third prong, the Supreme Court has held that equitable doctrines such as waiver, estoppel and equitable tolling "are to be applied sparingly." Id. at 113, 122 S.Ct. 2061, citing Zipes v. Trans World Airlines, Inc., 455 U.S. 385, 393, 102 S.Ct. 1127, 71 L.Ed.2d 234 (1982), and Baldwin County Welcome Center v. Brown, 466 U.S. 147, 152, 104 S.Ct. 1723, 80 L.Ed.2d 196 (1984). In Hildebrandt v. Illinois Dept. of Natural Resources, 347 F.3d 1014, 1027 (7th Cir.2003), the Seventh Circuit observed, "Morgan foreclosed the use of the continuing violation doctrine to incorporate untimely claims for discrete discriminatory actions even though they may be related to a timely claim."..."

15. § 2000e-3. Other unlawful employment practices

42 USCA § 2000e-3

"...(a) Discrimination for making charges, testifying, assisting, or participating in enforcement proceedings It shall be an unlawful employment practice for an employer to discriminate against any of his employees or applicants for employment, for an employment agency, or joint labor-management committee controlling apprenticeship or other training or retraining, including on-the-job training programs, to discriminate against any individual, or for a labor organization to discriminate against any member thereof or applicant for membership, because he has opposed any practice made an unlawful employment practice by this subchapter, or because he has made a charge, testified, assisted, or participated in any manner in an investigation, proceeding, or hearing under this subchapter. (b) Printing or publication of notices or advertisements indicating prohibited preference, limitation, specification, or discrimination; occupational qualification exception It shall be an unlawful employment practice for an employer, labor organization, employment agency, or joint labor-management committee controlling apprenticeship or other training..."

Additional Research on This Topic

16. § 2000e-5. Enforcement provisions [Statutory Text & Notes of Decisions subdivisions I to XI]

42 USCA § 2000e-5

"...(g) Injunctions; appropriate affirmative action; equitable relief; accrual of back pay; reduction of back pay; limitations on judicial orders (B) On a claim in which an individual proves a violation under section 2000e-2(m) of

this title and a respondent demonstrates that the respondent would have taken the same action in the absence of the impermissible motivating factor, the court--..."

"...(a) Power of Commission to prevent unlawful employment practices The Commission is empowered, as hereinafter provided, to prevent any person from engaging in any unlawful employment practice as set forth in section 2000e-2 or 2000e-3 of this title. (b) Charges by persons aggrieved or member of Commission of unlawful employment practices by employers, etc.; filing; allegations; notice to respondent; contents of notice; investigation by Commission; contents of charges; prohibition on disclosure of charges; determination of reasonable cause; conference, conciliation, and persuasion for elimination of unlawful practices; prohibition on disclosure of informal endeavors to end unlawful practices; use of evidence in subsequent proceedings; penalties for disclosure of information; time for determination of reasonable cause Whenever a charge is filed by or on behalf of a person claiming to be aggrieved, or by a member of the Commission, alleging that an employer, employment agency, labor organization, or joint labor-management committee controlling apprenticeship..."

17. § 2000e. Definitions

42 USCA § 2000e

"...For the purposes of this subchapter-- (a) The term "person" includes one or more individuals, governments, governmental agencies, political subdivisions, labor unions, partnerships, associations, corporations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in cases under Title 11, or receivers. (b) The term "employer" means a person engaged in an industry affecting commerce who has fifteen or more employees for each working day in each of twenty or more calendar weeks in the current or preceding calendar year, and any agent of such a person, but such term does not include (1) the United States, a corporation wholly owned by the Government of the United States, an Indian tribe, or any department or agency of the District of Columbia subject by statute to procedures of the competitive service (as defined in section 2102 of Title 5), or (2) a bona fide private membership club (other than al) The term "complaining party" means the Commission, the Attorney General, or a person who may bring an action or proceeding under this subchapter...."

18. § 2000e-16. Employment by Federal Government

42 USCA § 2000e-16

"...Section 2000e-5(e)(3) of this title shall apply to complaints of discrimination in compensation under this section. ..."

"...(a) Discriminatory practices prohibited; employees or applicants for employment subject to coverage All personnel actions affecting employees or applicants for employment (except with regard to aliens employed outside the limits of the United States) in military departments as defined in section 102 of Title 5, in executive agencies as defined in section 105 of Title 5 (including employees and applicants for employment who are paid from nonappropriated funds), in the United States Postal Service and the Postal Regulatory Commission, in those units of the Government of the District of Columbia having positions in the competitive service, and in those units of the judicial branch of the Federal Government having positions in the competitive service, in the Smithsonian

Institution, and in the Government Publishing Office, the Government Accountability Office, and the Library of Congress shall be made free from any discrimination based on race, color, religion, sex, or national origin. (b)..."

19. 🚩 § 2000e-2. Unlawful employment practices [Statutory Text & Notes of Decisions subdivisions I to IV]

42 USCA § 2000e-2

"...(a) Employer practices It shall be an unlawful employment practice for an employer-- (1) to fail or refuse to hire or to discharge any individual, or otherwise to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual's race, color, religion, sex, or national origin; or (2) to limit, segregate, or classify his employees or applicants for employment in any way which would deprive or tend to deprive any individual of employment opportunities or otherwise adversely affect his status as an employee, because of such individual's race, color, religion, sex, or national origin. (b) Employment agency practices It shall be an unlawful employment practice for an employment agency to fail or refuse to refer for employment, or otherwise to discriminate against, any individual because of his race, color, religion, sex, or national origin, or to classify or refer for employment any..."

"...Except as otherwise provided in this subchapter, an unlawful employment practice is established when the complaining party demonstrates that race, color, religion, sex, or national origin was a motivating factor for any employment practice, even though other factors also motivated the practice...."

Administrative decisions and guidance

EEOC ENFORCEMENT GUIDANCE ON RETALIATION AND RELATED ISSUES

August 25, 2016 • 2016 WL 4688886

"...Equal Employment Opportunity Commission (E.E.O.C.) EEOC ENFORCEMENT GUIDANCE ON RETALIATION AND RELATED ISSUES August 25, 2016 Number 915.004 SUBJECT: EEOC Enforcement Guidance on Retaliation and Related Issues PURPOSE: This transmittal covers the issuance of the EEOC Enforcement Guidance on Retaliation and Related Issues , a sub-regulatory document that provides guidance..."

"...DATA: This document supersedes the EEOC Compliance Manual Section 8: Retaliation (1998). ORIGINATOR: Office of Legal Counsel Jenny R. Yang Chair..."

"...I. INTRODUCTION A. Background B. Overview II. ELEMENTS OF A RETALIATION CLAIM A. Protected Activity 1. Participation 2. Opposition a. Expansive..."

"...May Be Based on Reasonable Good Faith Belief, Even if Conduct Opposed Is Ultimately Deemed Lawful EXAMPLE 1: Protected Opposition - Reasonable..."

ENFORCEMENT GUIDANCE ON HARASSMENT IN THE WORKPLACE

April 29, 2024 • 2024 WL 4563681

"...Color 3. National Origin 4. Religion 5. Sex a. Harassing Conduct of a Sexualized Nature or Otherwise Based on Sex b..."

"...Gender Identity 6. Age 7. Disability 8. Genetic Information 9. Retaliation 10. Cross-Bases Issues B. Establishing Causation 1. Generally 2. Facially Discriminatory Conduct 3. Stereotyping 4. Context 5. Link Between Conduct That Is Not Explicitly Connected to a Protected Basis and Facially Discriminatory Conduct 6. Timing 7. Comparative Evidence 8. Causation Issues Related to..."

"...Hostile Work Environment B. Hostile Work Environment 1. Unwelcomeness a. Conduct That Is Subjectively and Objectively Hostile Is Also Necessarily Unwelcome..."

"...Context C. The Scope of Hostile Work Environment Claims 1. Conduct Must Be Sufficiently Related 2. Types of Conduct a. Conduct That Is Not Directed at the Complainant b. Conduct That Occurs in Work-Related Context Outside of Regular Place of Work c. Conduct That Occurs in a Non-Work-Related Context, But with..."

In the Matter of LabMD, Inc., a corporation.

August 30, 2016 • 2016 WL 4913403

"...States Court of Appeals. Patrick J. Massari Erica L. Marshall Cause of Action Institute 1875 Eye Street, NW Suite 800 Washington..."

"...Commission Opinion Erroneously Ignored Initial Decision's Evaluation of Complaint Counsel's Harm Experts 19 v. FTC Staff's Relationship with Tiversa Violates Fourth Amendment 20 vi. Improper Cost-Benefit Analysis 20 vii..."

"...Issuance of Complaint 24 ix. Commission Part 3 Administrative Process Violates Due Process 24 B. Irreparable Harm to Respondent Absent Stay 25 1. Unpayable and Irrecoverable Compliance Costs 25 2. Violations of Constitutional Rights 26 3. Reputational Harm 29 C. Harm..."

"...applicant's success on appeal, whether the applicant will suffer irreparable harm if a stay is not granted, the degree of injury..."

Additional secondary sources

EMPLOYMENT LAW UPDATE: U.S. SUPREME COURT, FIFTH CIRCUIT AND MORE

The Advocate (Texas) • 54 The Advoc. (Texas) 7

C1-2TABLE OF CONTENTS I. HOT OFF THE PRESS. 1	A. DOL: Department of Labor. 1	1. Mortgage Loan Officers Are Non-Exempt Employees. 1
2. DOL Redefines “Clothes”. 1	3. Fact Sheet on Breaks to Nursing Mothers. 1	4. New FMLA Ruling Affects Employers - (Same-sex Partners). 1
B. EEOC:. 1	1. EEOC FY 2010 Charge Statistics. 1	2. GINA Final Rule. 2
3. Proposed Regulations Under		

the ADAAA. 2 4. NPR Published on "Reasonable Factors Other Than Age". 3 5. You Can Run, But Can't Hide (Even from...

"...Section 1079B amends the anti-retaliation provision of the False Claims Act, 31 U.S.C. § 3730(h), by expanding the definition of protected conduct to include "lawful acts done by the employee, contractor, or agent or associated others in furtherance of an action under this section or other efforts to stop 1 or more violations of [the False Claims Act]," thereby protecting against associational discrimination and covering a broad range of activities that could further a potential qui tam action or could stop a violation..."

"...Section 1057 prohibits retaliation against an employee who has engaged in any of the following protected acts:

- Provided, caused to be provided, or is about to provide or cause to be provided, to an employer, the newly created Bureau of Consumer Financial Protection (Bureau), or any other government authority or law enforcement agency, information that the employee reasonably believes relates to any violation of any provision of Title X of the bill, which establishes new consumer financial protections, or any rule, order, standard or prohibition prescribed or enforced by the Bureau;..."

"...Such alleged conduct violates Title VII of the Civil Rights Act of 1964, as amended by Pregnancy Discrimination Act, under which employment discrimination on the basis of pregnancy, childbirth, or related medical conditions constitutes unlawful sex discrimination...."

"...Dissent: The dissent argued that the majority's decision to continue application of the mixed-motive analysis to Title VII retaliation cases "effectively creates an unnecessary split in the circuits by failing to properly apply the Supreme Court's ruling in Gross .." The dissent noted that the Seventh Circuit no longer applies the mixed-motive analysis to Title VII retaliation cases...."

LABOR AND EMPLOYMENT LAW UPDATE

The Advocate (Texas) • 46 The Advoc. (Texas) 1

C1-3TABLE OF CONTENTS I. LEGISLATIVE DEVELOPMENTS. 1 A. ADA Amendments Act of 2008. 1 1. "Substantially Limits" is Redefined. 1 a. Pre-ADAAA Law. 2 b. The ADAAA Law. 2 2. "Major Life Activities" are Enumerated. 2 a. Pre-ADAAA Law. 2 b. The ADAAA Law. 2 3. "Major Life Activities" are Expanded to Include "Major Bodily Functions". 2 a. Pre-ADAAA Law. 2 b. The ADAAA Law. 3 4. Mitigating Measures Are Eliminated from Consideration. 3 a. Pre-ADAAA Law. 3...

"...First, while CBOCS is correct that § 1981's plain text does not expressly refer to retaliation, that alone is not sufficient to carry the day, given this Court's long recognition that §1982 provides protection against retaliation; Jackson's recent holding that Title IX of the Education Amendments of 1972 includes an anti-retaliation remedy, despite Title IX's failure to use the word "retaliation," 544 U. S., at 173-174, 176; and Sullivan's refusal to embrace a similar argument, see..."

"...Though the Department of Labor had charged the violations as separate incidents, and as such they were each subject to a mandatory fine of between \$5,000 and \$70,000, the ALJ decided to treat all of each companies' violations as a single violation, and fined each the maximum of \$70,000 for a single violation...."

"...A bar to arbitration in the Federal Arbitration Act (at 9 U.S.C. § 1, excluding arbitration for employment contracts of seamen) did not apply; nor did arbitration violate a provision of the Federal Employers' Liability Act (even if incorporated into the Jones Act), which prohibited contractual exemptions from liability - Terrebonne did not cede any substantive Jones Act rights...."

"...Second, contrary to CBOCS' assertion, Congress' failure to include an explicit anti-retaliation provision in its 1991 amendment of § 1981 does not demonstrate an intention not to cover retaliation, but is more plausibly explained by the fact that, given Sullivan and the new statutory language nullifying Patterson, there was no need to include explicit retaliation language...."

Causation under Retaliation Provision of Fair Housing Act (42 U.S.C.A. § 3617)

American Law Reports ALR Federal 3d • 46 A.L.R. Fed. 3d Art. 7 (Originally published in 2019)

The Fair Housing Act (Title VIII of the Civil Rights Act of 1968, 42 U.S.C.A. §§ 3601 et seq.) protects people from discrimination when they are renting or buying a home, getting a mortgage, seeking housing assistance, or engaging in other housing-related activities. The FHA makes it unlawful to coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of any right granted or protected by the Act (42 U.S.C.A. § 3617). A plaintiff seeking to establish a prima facie case of retaliation must show that they engaged in a protected activity, the defendant subjected them to an adverse action, and a causal link exists between the protected activity and the adverse action; if the plaintiff has presented a prima facie retaliation claim, the burden shifts to the defendant to articulate a legitimate, nondiscriminatory reason for its decision, and if the defendant articulates such a reason, the plaintiff bears the ultimate burden of demonstrating...

"...—the pro se tenant's Fair Housing Act (FHA) (42 U.S.C.A. § 3617) retaliation claim against the housing authority regarding their eviction failed because, as a matter of causal logic, the district court said that retaliation complaints must precede the allegedly retaliatory action...."

"...McColm v. San Francisco Housing Authority, 2009 WL 2901596 (N.D. Cal. 2009) (unreported opinion) The district court held a public housing resident failed to establish a prima facie case of retaliation under the Fair Housing Act (FHA) (42 U.S.C.A. § 3617) against the city housing authority because they failed to submit evidence to establish that the lawsuits were the cause of any retaliation..."

"...Herndon v. Housing Authority of South Bend, Indiana, 670 Fed. Appx. 417 (7th Cir. 2016) The Seventh Circuit reversed the lower court's dismissal of the tenant's Fair Housing Act (FHA) (42 U.S.C.A. § 3617) retaliation claim, and held the tenant satisfied the initial pleading requirements when they alleged that on the same day that they filed their complaint with the Human Rights Commission, the staff and the Housing Authority allegedly retaliated..."

"...Matarese v. Archstone Pentagon City, 795 F. Supp. 2d 402 (E.D. Va. 2011), aff'd in part, vacated in part on other grounds, 468 Fed. Appx. 283 (4th Cir. 2012) In a retaliation claim brought pursuant to the Fair Housing Act (FHA) (42 U.S.C.A. § 3617), the district court held the tenants had proven that the landlord retaliated against them by not renewing their lease and increasing their rent by exorbitant rates, and such conduct..."

Current awareness

Labor and employment roundup for the week ending March 15, 2019

WESTLAW Labor and Employment Daily Briefing • 2019 WL 1213048

Here are some recent highlights in private and government agency litigation, enforcement actions, and legislation and regulations.

"...Retaliation..."

"...An agricultural employer in Ocoee, Florida, has paid \$18,844 in back wages to 14 employees after the U.S. Labor Department found it had violated the Fair Labor Standards Act's overtime, record-keeping and child labor provisions...."

"...An Orlando, Florida, laundry service company has agreed to pay \$60,863 in back wages to 15 employees to resolve U.S. Labor Department allegations that the firm violated the Fair Labor Standards Act's overtime and record-keeping provisions...."

"...A company that operates five South Florida assisted living facilities has paid 20 employees \$103,389 in back wages after the U.S. Labor Department found violations of the Fair Labor Standards Act's minimum wage, overtime and record-keeping provisions...."

Labor and employment roundup for the week ending May 17, 2019

WESTLAW Labor and Employment Daily Briefing • 2019 WL 2147366

Here are some recent highlights in private and government agency litigation, enforcement actions, and legislation and regulations.

"...Retaliation..."

"...A Clarksville, Tennessee, tire manufacturer has paid 136 employees a total of \$659,300 in back wages and liquidated damages to resolve U.S. Labor Department charges alleging it violated the Fair Labor Standards Act's overtime and record-keeping provisions...."

"...A Silicon Valley data collection services company based in Milpitas, California, will pay 34 employees a combined \$910,900 in back wages and liquidated damages for violating the minimum wage, overtime and record-keeping provisions of the Fair Labor Standards Act...."

"...The EEOC said it had brought two administrative charges and three previous lawsuits against the club and entered three consent decrees over eight years, but Danny's persisted in discriminating against the dancers in violation of Title VII of the Civil Rights Act of 1964...."

The not-so-innocuous side of inoculations — assessing whistleblower risks when requiring COVID-19 vaccines for your employees

Practitioner Insights Commentaries • 2021 WL 2346748

Littler Mendelson attorneys Jacqueline Phipps Polito, Jennifer Duke, Meredith Schramm-Strosser and Hinna Upal examine ways employees can oppose a vaccine mandate, steps employers should take to comply with applicable laws, and the remedies available to employees who show that a mandate violated the law.

"...Under Title VII and the ADA, courts may issue temporary or injunctive relief, such as a restraining order, against the employer if the challenged action is likely to constitute unlawful retaliation, and the individual plaintiff (or the EEOC) is likely to suffer irreparable harm because of the retaliation...."

"...Retaliation claims arise when an individual who engaged in protected activity is later subject to an adverse employment action, such as a demotion, denial of overtime or promotion, reduction in pay or hours, or layoff or termination...."

"...Employers must abide by the reasonable accommodation provisions of Title VII of the Civil Rights Act of 1964 ("Title VII") and the Americans with Disabilities Act ("ADA"), which means that employers may need to excuse employees from the vaccination requirement in certain circumstances...."

"...Even in a non-union environment, employees against a vaccine mandate may file unfair labor practice charges if they perceive retaliation for their efforts to mobilize co-workers around an issue that affects the terms and conditions of their employment...."

Follow-up question

2. Does maintaining unsafe or uninhabitable housing conditions for a disabled tenant constitute discrimination under the Fair Housing Act?

Maintaining unsafe or uninhabitable housing conditions for a disabled tenant can constitute discrimination under the Fair Housing Act (FHA) if such conditions result in discriminatory treatment or effect, or if they involve a failure to make reasonable accommodations necessary for the tenant to have equal opportunity to use and enjoy the dwelling. The FHA prohibits discrimination in housing based on disability, including in the terms, conditions, or privileges of rental or sale, or in the provision of services or facilities in connection with housing (🚩 [42 U.S.C.A. § 3604](#)) [1]. Discrimination under the FHA includes actions that make housing unavailable or deny housing to individuals because of their disability (24 C.F.R. § 100.50) [2].

Discrimination Under The Fair Housing Act

The FHA explicitly prohibits discrimination against individuals with disabilities in housing. 🚩 [Section 3604\(f\)\(1\)](#) makes it unlawful to "discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap" of the buyer or renter, a person residing in the dwelling, or a person associated with the buyer or renter (🚩 [42 U.S.C.A. § 3604](#)) [1]. Additionally, 🚩 [Section 3604\(f\)\(2\)](#) prohibits discrimination in the terms, conditions, or privileges of housing or in the provision of services or facilities in connection with housing because of a disability (🚩 [42 U.S.C.A. § 3604](#)) [1], (24 C.F.R. § 100.50) [2].

Discrimination under the FHA includes a refusal to make reasonable accommodations in rules, policies, practices, or services when such accommodations are necessary to afford a disabled person an equal opportunity to use and enjoy a dwelling (🚩 [42 U.S.C.A. § 3604](#)) [1]. Courts have recognized that the FHA has a "broad and inclusive compass" and should be given a "generous construction" to fulfill its purpose of eradicating discriminatory practices and ensuring equal housing opportunities for individuals with disabilities (🚩 [Swanston v. City of Plano, Texas, 557 F.Supp.3d 781 \(2021\)](#)) [3].

Unsafe Or Uninhabitable Conditions As Discrimination

The FHA's prohibition against discrimination extends to the provision of services or facilities in connection with housing. If a landlord fails to maintain housing in a habitable condition, particularly when the tenant is disabled and the conditions disproportionately affect their ability to use and enjoy the dwelling, this may constitute discrimination under the FHA. For example, the statute defines discrimination to include a refusal to make reasonable accommodations or modifications necessary for a disabled person to fully enjoy the premises (🚩 [42 U.S.C.A. § 3604](#)) [1].

In cases where unsafe or uninhabitable conditions are present, a disabled tenant may argue that the landlord's failure to address these conditions constitutes a refusal to provide necessary accommodations or services. For instance, the FHA requires landlords to permit reasonable modifications to existing premises at the expense of the disabled person if such modifications are necessary for full enjoyment of the premises (🚩 [42 U.S.C.A. § 3604](#)) [1]. Similarly, landlords must make reasonable accommodations in rules, policies, practices, or services to ensure equal housing opportunities for disabled tenants (🚩 [42 U.S.C.A. § 3604](#)) [1].

Case Law Addressing Discrimination Against Disabled Tenants

Case law supports the principle that discriminatory treatment or failure to accommodate disabled tenants can violate the FHA. In [Ryan v. Ramsey](#), the court emphasized that the FHA's purpose is to ensure that individuals with disabilities are treated as individuals rather than based on stereotypes when being considered for housing ([Ryan v. Ramsey, 936 F.Supp. 417 \(1996\)](#)) [4]. The court also noted that discriminatory intent or treatment can establish a violation of the FHA ([Ryan v. Ramsey, 936 F.Supp. 417 \(1996\)](#)) [4].

In [Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#), the court outlined the elements of a failure-to-accommodate claim under the FHA, which include demonstrating that the residents suffer from a disability, requested a reasonable accommodation, and that the accommodation was necessary to afford them equal opportunity to use and enjoy the dwelling ([Women's Elevated Sober Living L.L.C. v. City of Plano, Texas, 86 F.4th 1108 \(2023\)](#)) [5]. Similarly, in [Chavez v. Aber](#), the court reiterated that discrimination under the FHA includes a refusal to make reasonable accommodations necessary for equal housing opportunities ([Chavez v. Aber, 122 F.Supp.3d 581 \(2015\)](#)) [6].

Causal Nexus Between Disability And Discrimination

Federal laws requiring reasonable accommodations for disabled individuals generally require a causal nexus between the disability and the discriminatory conduct. For example, in [Heinert v. Wichita Falls Housing Authority](#), the court held that a landlord's policy of evicting tenants for lease violations did not constitute discrimination under the FHA because there was no causal link between the tenant's disability and the conduct leading to eviction ([Heinert v. Wichita Falls Housing Authority, 441 S.W.3d 810 \(2014\)](#)) [7]. This principle underscores the importance of demonstrating that the unsafe or uninhabitable conditions directly impact the disabled tenant's ability to use and enjoy the dwelling due to their disability.

Precedential Considerations

It is important to note that the decision in [Swanston v. City of Plano, Texas](#), which discusses the FHA's broad purpose, was vacated and remanded by [Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#) in November 2023. Therefore, reliance on Swanston should be approached with caution, as its precedential value has been affected ([Swanston v. City of Plano, Texas, 557 F.Supp.3d 781 \(2021\)](#)) [3].

In summary, maintaining unsafe or uninhabitable housing conditions for a disabled tenant may constitute discrimination under the FHA if it results in discriminatory treatment or effect, or if it involves a failure to make reasonable accommodations necessary for the tenant to have equal opportunity to use and enjoy the dwelling ([Chavez v. Aber, 122 F.Supp.3d 581 \(2015\)](#)) [6]. However, a causal nexus between the tenant's disability and the discriminatory conduct must be established to support a claim under the FHA ([Heinert v. Wichita Falls Housing Authority, 441 S.W.3d 810 \(2014\)](#)) [7].

Commentary about this question

§ 3:99. Constructive eviction

Real Estate Law Digest, Fourth Edition • 1 Real Estate Law Digest 4th § 3:99

This legal analysis addresses the concept of constructive eviction, defined as landlord actions that substantially interfere with a tenant's beneficial enjoyment of leased premises by rendering them unsafe, unfit, or unsuitable for occupancy. The material outlines various cases illustrating constructive eviction arising from uninhabitable conditions such as mold, water damage, pest infestations, and utility shutoffs. It also discusses the tenant's obligations to notify landlords and allow reasonable time for remediation. Specific Texas cases confirm that constructive eviction relieves tenants of rent obligations and may entitle them to damages when landlords fail in repair duties, including hazardous environmental conditions like asbestos. While the focus remains on landlord-tenant disputes over physical conditions, the principles implicated touch on landlord discrimination claims by disabled tenants where unsafe housing conditions might be deemed an adverse, discriminatory act under broader fair housing laws, relevant in a Texas and federal context.

§ 3:86. Implied warranty of habitability

Real Estate Law Digest, Fourth Edition • 1 Real Estate Law Digest 4th § 3:86

This legal treatise excerpt comprehensively discusses the implied warranty of habitability, a doctrine relevant to landlord obligations to maintain safe, sanitary, and habitable housing conditions. It details various case law demonstrating breaches of this warranty through unsafe or uninhabitable conditions including electrical hazards, pest infestations, sewage leaks, and failure to repair known defects. The coverage includes remedies such as rent abatement and damages measured by diminution in rental value. While focused primarily on contract-based landlord-tenant relationships, it highlights that such breaches affect the tenant's use and enjoyment of premises, sometimes extending to tenants with disabilities. Although the analysis primarily revolves around habitability claims, it situates landlord liability within broader statutory and common law frameworks including housing codes and consumer protection statutes applicable in multiple jurisdictions. This material provides foundational context for understanding discrimination implications tied to maintenance of unsafe housing under federal and state laws in Texas and beyond.

APPENDIX D. Attorney's Forms

Housing Discrimination Law and Litigation • Housing Discrimination Law and Litigation Appendix D

This text discusses housing discrimination claims under the federal Fair Housing Act (FHA), including discrimination based on disability and failure to provide reasonable accommodations. It details investigative and legal processes related to discriminatory housing conditions, including uninhabitable dwelling maintenance and landlords' refusal to accommodate disabilities. The narrative illustrates how discriminatory conduct, such as evicting disabled tenants or subjecting tenants to unsafe living conditions, can constitute violations of the FHA. It further outlines the burden of proof for establishing discrimination, the rights of disabled tenants, and remedies such as damages and injunctive relief. The material also references retaliation claims when disabled tenants assert their rights and emphasizes the protection against discriminatory eviction and conditions that impair tenants' use and enjoyment of housing. The analysis is framed within federal law, with references to regulatory standards and case law pertinent in U.S. jurisdictions, including standards relevant to Texas federal and state law enforcement of fair housing protections.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. § 3604. Discrimination in the sale or rental of housing and other prohibited practices

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination³) For purposes of this subsection, discrimination includes-- (C) in connection with the design and construction of covered multifamily dwellings for first occupancy after the date that is 30 months after September 13, 1988, a failure to design and construct those dwellings in such a manner that-- (i) the public use and common use portions of such dwellings are readily accessible to and usable by handicapped persons;..."

2. § 100.50 Real estate practices prohibited.

24 CFR § 100.50

"...(a) This subpart provides the Department's interpretation of conduct that is unlawful housing discrimination under section 804 and section 806 of the Fair Housing Act. In general the prohibited actions are set forth under sections of this subpart which are most applicable to the discriminatory conduct described. However, an action illustrated in one section can constitute a violation under sections in the subpart. For example, the conduct described in S 100.60(b)(3) and (4) would constitute a violation of S 100.65(a) as well as S 100.60(a). (b) It shall be unlawful to: (1) Refuse to sell or rent a dwelling after a bona fide offer has been made, or to refuse to negotiate for the sale or rental of a dwelling because of race, color, religion, sex, familial status, or national origin, or to discriminate in the sale or rental of a dwelling because of handicap. (2) Discriminate in the terms,..."

3. Swanston v. City of Plano, Texas

United States District Court, E.D. Texas, Sherman Division. • August 27, 2021 • 557 F.Supp.3d 781 • 2021 WL 3847471

"...II. Overview of Applicable Law. "Congress enacted the FHA 'to eradicate discriminatory practices within a sector of our Nation's economy' and to clearly pronounce 'a national commitment to end the unnecessary exclusion of persons with handicaps from the American mainstream.'" Swanston v. City of Plano, Tex., No. 4:19-CV-412, 2020 WL 7080817, at *2 (E.D. Tex. Dec. 3, 2020) (first quoting Tex. Dep't of Hous. & Cmty. Affs. v. Inclusive Comms. Project, Inc. ("TDHCA"), 576 U.S. 519, 539, 135 S.Ct. 2507, 192 L.Ed.2d 514 (2015); and then quoting Groome Res., Ltd., L.L.C. v. Parish of Jefferson, 234 F.3d 192, 201 (5th Cir. 2000)). Under the FHA, it is unlawful to sell, rent, or otherwise make unavailable or deny "a dwelling to any buyer or renter because of a handicap" of "that buyer or renter"; "a person residing in or intending to reside in that dwelling after it is so sold, rented, or made

available"; or "any person associated with that buyer or renter." 42 U.S.C. S 3604(f)(1)(A)-(C). For purposes of this subsection, discrimination includes "a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." Id. S 3604(f)(3). "(P)recedent recogniz(es) the FHA's 'broad and inclusive' compass"-accordingly, courts afford the provisions of the statutory scheme "a 'generous construction.'" City of Edmonds v. Oxford House, Inc., 514 U.S. 725, 731, 115 S.Ct. 1776, 131 L.Ed.2d 801 (1995) (quoting Trafficante v. Metro. Life Ins. Co., 409 U.S. 205, 209, 212, 93 S.Ct. 364, 34 L.Ed.2d 415 (1972))...."

4. Ryan v. Ramsey

United States District Court, S.D. Texas. • August 01, 1996 • 936 F.Supp. 417 • 1996 WL 465325

"...Violation of Fair Housing Act (FHA) provision prohibiting housing discrimination against disabled can be established by showing either discriminatory intent or treatment or significant discriminatory effect. Civil Rights Act of 1968, S 804(f)(1), as amended, 42 U.S.C.A. S 3604(f)(1)...."

"...(2). Consideration of Ryan's Handicap by Defendants. In the message Ramsey left on Ryan's answering machine, Ramsey states that she had experienced problems with the "disability thing" before, with regard to a previous tenant named "Johnny." It can be reasonably inferred from Ramsey's comments in the message that "Johnny's" problem was not an innate inability to pay the rent-instead, it can be inferred that the difficulty Ramsey experienced with "Johnny" was his wasting his benefits on "drugs and booze and everything else" and otherwise spending the available rent money. Although Ramsey concedes on the message that "that's not the kind of thing that you're likely to do," there is nevertheless a reasonable inference that Ramsey, having had a bad experience with a tenant who received disability benefits, did not wish to rent an apartment to another such tenant. A landlord's past negative experiences with members of a protected class, however, is not a legitimate justification for subsequent discrimination against other members of the protected class. See Baumgardner v. Secretary, HUD on Behalf of Holley, 960 F.2d 572, 574-75, 579 (6th Cir.1992). In Baumgardner, the Sixth Circuit affirmed a holding that a landlord who refused to rent to males because such persons were "messy and unclean" was guilty of discrimination even though the landlord had in fact experienced such difficulties in the past. Id. Applying the Baumgardner approach in cases of discrimination against the handicapped is consistent with the FHA's purpose to ensure that such persons are treated as individuals, not on the basis of stereotypes, when being considered for housing. See Support Ministries for Persons with AIDS, Inc., 808 F.Supp. at 130...."

"...To show violation of Fair Housing Act (FHA), plaintiff is not required to establish that his denial of housing was motivated solely by handicap discrimination; it is sufficient that his handicap was one significant factor considered by defendants in dealing with plaintiff. Civil Rights Act of 1968, S 804(f)(1), as amended, 42 U.S.C.A. S 3604(f)(1)...."

"...(2). Consideration of Ryan's Handicap by Defendants. Because a fact issue exists as to whether Ryan's disability was a determinative factor in the defendants' refusal to rent to him, the second of the Rhodes requirements has been met. Accordingly, the defendants are not entitled to summary judgment on the discriminatory intent theory of discrimination under the FHA...."

5. Women's Elevated Sober Living L.L.C. v. City of Plano, Texas

United States Court of Appeals, Fifth Circuit. • November 20, 2023 • 86 F.4th 1108 • 2023 WL 8014228

"...III. Under the FHA, it is unlawful "(t)o discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of . a person residing in or intending to reside in that dwelling." 42 U.S.C. S 3604(f)(1)(B). Discrimination includes "a refusal to make reasonable accommodations in rules (or) policies . when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." Id. S 3604(f)(3)(B). In a failure-to-accommodate claim, a plaintiff must demonstrate that (1) the residents of the affected dwelling or home suffer from a disability, (2) they requested an accommodation from the defendant, (3) the requested accommodation was reasonable, and (4) the requested accommodation was necessary to afford the residents equal opportunity to use and enjoy the home. See *Providence Behav. Health v. Grant Rd. Pub. Util. Dist.*, 902 F.3d 448, 459 (5th Cir. 2018). Importantly, the plaintiff bears the burden of proving a violation of the FHA. See *Elderhaven, Inc. v. City of Lubbock*, 98 F.3d 175, 178 (5th Cir. 1996)...."

6. **Chavez v. Aber**

United States District Court, W.D. Texas, El Paso Division. • August 08, 2015 • 122 F.Supp.3d 581 • 2015 WL 4724807

"...b. Plaintiffs have sufficiently pleaded a plausible claim of housing discrimination under 42 U.S.C. SS 3604(f)(1), 3604(f)(2), and 3604(f)(3)(B). Section 3604 of the FHA prohibits discrimination concerning the sale, rental, and financing of housing based on disability. See 42 U.S.C. S 3604; *City of Edmonds v. Oxford House, Inc.*, 514 U.S. 725, 729, 115 S.Ct. 1776, 131 L.Ed.2d 801 (1995). Under S 3604(f)(1) it is unlawful to "discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of (A) that buyer or renter; (B) a person residing in or intending to reside in that dwelling after it is sold, rented, or made available; or (C) any person associated with that buyer or renter." 42 U.S.C. S 3604(f)(1)(A); see also *City of Edmonds*, 514 U.S. at 729, 115 S.Ct. 1776. The FHA further prohibits discrimination "against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with such dwelling, because of a handicap of (A) that person; or (B) a person residing or intending to reside in that dwelling after it is so sold, rented or made available; or (C) any person associated with that person." 42 U.S.C. S 3604(f)(2); see also *Groome Res. Ltd., L.L.C. v. Parish of Jefferson*, 234 F.3d 192, 200 n. 9 (5th Cir.2000). "For the purposes of (S 3604), discrimination includes . a refusal to make reasonable accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." 42 U.S.C. S 3604(f)(3)(B); see also *City of Edmonds*, 514 U.S. at 729, 115 S.Ct. 1776...."

"...To prevail on claim under the Fair Housing Act (FHA) that a defendant refused to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, a plaintiff must prove all of the following elements: (1) that the plaintiff or his associate is handicapped within the meaning of FHA, (2) that the defendant knew or should reasonably be expected to know of the disability, (3) that accommodation of the handicap may be necessary to afford the handicapped person an equal opportunity to use and enjoy the dwelling, (4) that the accommodation is reasonable, and (5) that defendant refused to make the requested accommodation. Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

"...Under Fair Housing Act (FHA), landlord's denial of a reasonable accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, can be both actual or constructive, as an indeterminate delay has the same effect as an outright denial. Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

7. **Heinert v. Wichita Falls Housing Authority**

Court of Appeals of Texas, Amarillo. • July 29, 2014 • 441 S.W.3d 810 • 2014 WL 3747129

"...Evidence established that tenant was terminated from his tenancy due to his violation of the terms of his lease by engaging in criminal activity that threatened the housing authority staff, not due to his mental illness, and thus housing authority was not required to grant tenant a reasonable accommodation due to his disability; tenant failed to establish the precise nature, severity, limitations, or breadth of his disability, and thus there was no link between the disability and the conduct that formed housing authority's decision to evict tenant. Fair Housing Act, S 804(f)(1)(A), 42 U.S.C.A. S 3604(f)(1)(A)...."

"...Reasonable Accommodation: Application of Appropriate Standard. (T)he policy of evicting tenants who violate provisions of their lease does not prevent disabled tenants from using the premises because of their disability. Rather, these tenants are prevented from using the premises because they violated their lease. There is thus no link between this policy and (the tenant's) disability...."

"...As a general rule, federal laws requiring reasonable accommodations for the disabled all require a causal nexus between the plaintiff's disability and the underlying basis for terminating the tenancy before the duty to consider a reasonable accommodation arises. Fair Housing Act, S 804(f)(1)(A), 42 U.S.C.A. S 3604(f)(1)(A)...."

"...Reasonable Accommodation. Under the Fair Housing Act (FHA), discrimination against a person on the basis of his or her handicap is an unlawful practice. See *Richardson v. SV Alameda I L.P.*, No. 01-11-01004-CV, 2013 WL 4680392, at *6, 2013 Tex.App. LEXIS 11111, at *15 (Tex.App.-Houston (1st Dist.) Aug. 29, 2013, no pet.) (mem. op.). More specifically, "it shall be unlawful . (t)o discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of . that buyer or renter." 42 U.S.C.A. S 3604(f)(1)(A) (West 2012). "Discrimination" includes "a refusal to make reasonable accommodations in rules, policies, practices, or services when such accommodation may be necessary to afford such person equal opportunity to use and enjoy a dwelling." Id. S 3604(f)(3)(B)...."

8. Robinson v. City of Friendswood

United States District Court, S.D. Texas, Houston Division. • February 16, 1995 • 890 F.Supp. 616 • 1995 WL 374653

"...Provision of Fair Housing Act (FHA) making it unlawful to discriminate in sale or rental, or otherwise to make unavailable or deny, dwelling to buyer or renter because of handicap applies not only to sellers or landlords, but to sophisticated practices such as enforcing zoning or land use laws that have effect of denying housing to disabled. Civil Rights Act of 1968, S 804(f)(1), as amended, 42 U.S.C.A. S 3604(f)(1)...."

9. Groome Resources Ltd., L.L.C. v. Parish of Jefferson

United States Court of Appeals, Fifth Circuit. • November 20, 2000 • 234 F.3d 192 • 2000 WL 1724989

"...A. Purpose of the Fair Housing Amendments Act. In the scheme of the FHAA, the reasonable accommodations provision exists as a prohibition on discrimination against the disabled in the purchase, sale, or rental of housing. As set out in S 3604(f)(3)(B), the failure to reasonably accommodate the disabled in the context of housing is, itself, a defined act of discrimination. The question before this court is whether the activity of regulating discrimination

against the disabled in the purchase, sale, or rental of housing can be shown to substantially affect interstate commerce, and therefore be upheld as a legitimate exercise of congressional authority...."

10. **Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.**

United States District Court, W.D. Texas, Austin Division. • June 23, 2020 • 468 F.Supp.3d 800 • 2020 WL 3440569

"...Provision of Fair Housing Act (FHA) making it unlawful to discriminate in sale or rental, or otherwise make unavailable or deny, a dwelling because of handicap of buyer or renter is a catch-all provision intended to cover other ways that an individual may make housing unavailable to the disabled beyond the specific types of discrimination listed in another provision. 42 U.S.C.A. SS 3604(f)(1), 3604(f)(3)(C)...."

11. **Texas Dept. of Housing and Community Affairs v. Inclusive Communities Project, Inc.**

Supreme Court of the United States • June 25, 2015 • 576 U.S. 519 • 135 S.Ct. 2507

"...The underlying dispute in this case concerns where housing for low-income persons should be constructed in Dallas, Texas—that is, whether the housing should be built in the inner city or in the suburbs. This dispute comes to the Court on a disparate-impact theory of liability. In contrast to a disparate-treatment case, where a “plaintiff must establish that the defendant had a discriminatory intent or motive,” a plaintiff bringing a disparate-impact claim challenges practices that have a “disproportionately adverse effect on minorities” and are otherwise unjustified by a legitimate rationale. *Ricci v. DeStefano*, 557 U.S. 557, 577, 129 S.Ct. 2658, 174 L.Ed.2d 490 (2009) (internal quotation marks omitted). The question presented for the Court’s determination is whether disparate-impact claims are cognizable under the Fair Housing Act (or FHA), 82 Stat. 81, as amended, 42 U.S.C. § 3601 et seq. I .A Before turning to the question presented, it is necessary to..."

12. **Arredondo v. Village on the Lake, LTD**

Court of Appeals of Texas, Houston (14th Dist.). • December 14, 2023 • 681 S.W.3d 853 • 2023 WL 8631465

"...Background: Tenant, who was mother of minor children who lived with her, brought action against landlord and landlord's general partner, alleging familial status discrimination, breach of contract, constructive eviction, and breach of warranty of quiet enjoyment after tenant moved out of apartment two months after moving in due to receipt of multiple noise and other complaints. Landlord counterclaimed for unpaid rent and fees. The 151st District Court, Harris County, granted landlord's motion for traditional and no-evidence summary judgment. Tenant appealed. Holdings: The Court of Appeals, Poissant, J., held that: tenant waived any argument on appeal that landlord and landlord's general partner engaged in disparate treatment discrimination based on familial status under Fair Housing Act (FHA) or Texas Fair Housing Act (TFHA); there was no evidence that provision in rental agreement prohibiting certain conduct had disparate impact on families, as required to support claim of disparate impact discrimination; landlord and general partner were not liable for breach of lease, in absence of any identification of a provision in the lease that landlord allegedly violated; landlord providing warnings and notifications about noise complaints to tenant did not substantially interfere with tenant's use of property, as required element of claims for constructive eviction and breach of warranty of quiet enjoyment; and landlord

was entitled to recover for unpaid rent, cleaning fees, unreturned keys and remotes, and other fees from tenant pursuant to parties' lease agreement. Affirmed...."

13. § 2891a. Requirements relating to management of housing units

10 USCA § 2891a

"...(a) In general.--The Secretary of Defense shall ensure that each contract between the Secretary concerned and a landlord regarding the management of housing units for an installation of the Department of Defense includes the requirements set forth in this section. (b) Requirements for installation commanders.--(1) The installation commander shall be responsible for-- (A) reviewing, on an annual basis, the mold mitigation plan and pest control plan of each landlord managing housing units for the installation; and (B) notifying the landlord and the major subordinate command of any deficiencies found in either plan. (2) In response to a request by the head of the housing management office of an installation, the installation commander shall use the assigned bio-environmental personnel or contractor equivalent at the installation to test housing units for mold, unsafe water conditions, and other health and safety conditions. (c) Requirements for housing management office.--(1) The head of the housing..."

"...(3)(A) Costs incurred to reasonably modify or upgrade a housing unit to comply with standards addressing discrimination against an individual with a disability established pursuant to the Americans with Disabilities Act of 1990 (42 U.S.C. 12101 et seq.), or to meet the reasonable modification and accommodation requirements of section 804 of the Fair Housing Act (42 U.S.C. 3604) and in order to facilitate occupancy of a housing unit by an individual with a disability, may not be considered optional services under paragraph (2)(A)(i) or another exception to the prohibition in paragraph (1) against collection from tenants of housing units of amounts in addition to rent...."

14. § 3607. Religious organization or private club exemption

42 USCA § 3607

"...(a) Nothing in this subchapter shall prohibit a religious organization, association, or society, or any nonprofit institution or organization operated, supervised or controlled by or in conjunction with a religious organization, association, or society, from limiting the sale, rental or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion, or from giving preference to such persons, unless membership in such religion is restricted on account of race, color, or national origin. Nor shall anything in this subchapter prohibit a private club not in fact open to the public, which as an incident to its primary purpose or purposes provides lodgings which it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of such lodgings to its members or from giving preference to its members. (b)(1) Nothing in this subchapter limits the applicability of..."

"...(3) Housing shall not fail to meet the requirements for housing for older persons by reason of..."

15. § 3617. Interference, coercion, or intimidation

42 USCA § 3617

Additional Research on This Topic

16. § 3613. Enforcement by private persons

42 USCA § 3613

"...(a) Civil action (1)(A) An aggrieved person may commence a civil action in an appropriate United States district court or State court not later than 2 years after the occurrence or the termination of an alleged discriminatory housing practice, or the breach of a conciliation agreement entered into under this subchapter, whichever occurs last, to obtain appropriate relief with respect to such discriminatory housing practice or breach. (B) The computation of such 2-year period shall not include any time during which an administrative proceeding under this subchapter was pending with respect to a complaint or charge under this subchapter based upon such discriminatory housing practice. This subparagraph does not apply to actions arising from a breach of a conciliation agreement. (2) An aggrieved person may commence a civil action under this subsection whether or not a complaint has been filed under section 3610(a) of this title and without regard to..."

"...Upon application by a person alleging a discriminatory housing practice or a person against whom such a practice is alleged, the court may-- (2) authorize the commencement or continuation of a civil action under subsection (a) without the payment of fees, costs, or security, if in the opinion of the court such person is financially unable to bear the costs of such action...."

Follow-up question

3. Can a landlord's refusal to remediate hazardous conditions for a disabled tenant be considered a discriminatory housing practice under 42 U.S.C. § 3604(f)?

A landlord's refusal to remediate hazardous conditions for a disabled tenant can be considered a discriminatory housing practice under [42 U.S.C.A. § 3604](#) (f). This statute prohibits discrimination in housing based on disability and includes specific provisions addressing the rights of disabled individuals to reasonable accommodations and modifications necessary for equal enjoyment of a dwelling.

Discrimination Under [42 U.S.C.A. § 3604](#) (f)

Under [42 U.S.C.A. § 3604](#) (f), it is unlawful to discriminate in the sale or rental of a dwelling or to make a dwelling unavailable to a buyer or renter because of a handicap. Discrimination includes refusing to make reasonable accommodations in rules, policies, practices, or services when such accommodations are necessary to afford disabled persons an equal opportunity to use and enjoy a dwelling ([42 U.S.C.A. § 3604](#)) [1]. The statute explicitly defines discrimination to include a refusal to permit reasonable modifications of existing premises at the expense of the disabled person if such modifications are necessary for full enjoyment of the premises ([42 U.S.C.A. § 3604](#)) [1].

Reasonable Accommodation and Modification Requirements

The Fair Housing Act (FHA) requires landlords to make reasonable accommodations or modifications to ensure that disabled tenants can enjoy their dwellings equally. For example, [24 C.F.R. § 100.203](#) provides that landlords must permit reasonable modifications to existing premises, such as installing grab bars or widening doorways, if necessary for the tenant's use and enjoyment of the dwelling. Refusal to allow such modifications constitutes unlawful discrimination under the FHA ([24 C.F.R. § 100.203](#)) [2]. Similarly, [42 U.S.C.A. § 3604](#) mandates that landlords make reasonable accommodations in rules, policies, practices, or services when necessary to afford disabled persons equal opportunity to use and enjoy a dwelling [\(f\)\(3\)\(B\)](#), ([42 U.S.C.A. § 3604](#)) [1].

Constructive Denial of Accommodation

A landlord's refusal to address hazardous conditions may also be considered a constructive denial of a reasonable accommodation under the FHA. Courts have recognized that an indeterminate delay or refusal to engage in the interactive process required by the FHA can have the same discriminatory effect as an outright denial of a request for accommodation ([Women's Elevated Sober Living L.L.C. v. City of Plano, Texas, 86 F.4th 1108 \(2023\)](#)) [3]. For example, in ([Chavez v. Aber, 122 F.Supp.3d 581 \(2015\)](#)) [4], the court noted that a housing provider who "stonewalls" or fails to act on a request for accommodation may be found to have constructively denied the request [Chavez v. Aber](#).

Burden of Proof in Failure-to-Accommodate Claims

To establish a failure-to-accommodate claim under the FHA, a plaintiff must demonstrate the following elements: (1) the tenant suffers from a disability; (2) the tenant requested an accommodation; (3) the requested accommodation was reasonable; (4) the accommodation was necessary to afford the tenant equal opportunity to use and enjoy the dwelling; and (5) the landlord refused to make the requested

accommodation ([Chavez v. Aber, 122 F.Supp.3d 581 \(2015\)](#)) [4]. The plaintiff bears the burden of proving these elements ([Chavez v. Aber, 122 F.Supp.3d 581 \(2015\)](#)) [4].

Application to Hazardous Conditions

Hazardous conditions in a dwelling may interfere with a disabled tenant's ability to use and enjoy the premises, particularly if the conditions exacerbate the tenant's disability or create barriers to accessibility. Under ([Women's Elevated Sober Living L.L.C. v. City of Plano, Texas, 86 F.4th 1108 \(2023\)](#)) [3](f) (3)(A) and (B), a landlord's refusal to remediate such conditions could be deemed discriminatory if the remediation constitutes a reasonable accommodation or modification necessary for the tenant's equal enjoyment of the dwelling [42 U.S.C.A. § 3604](#) . For example, if a disabled tenant requires modifications to address hazardous conditions that impede their ability to safely navigate or use the dwelling, the landlord's refusal to permit or undertake such modifications could violate the FHA.

Precedent Supporting Claims of Discrimination

Case law supports the interpretation that a landlord's refusal to address conditions affecting a disabled tenant's ability to enjoy their dwelling may constitute discrimination under the FHA. In ([Women's Elevated Sober Living L.L.C. v. City of Plano, Texas, 86 F.4th 1108 \(2023\)](#)) [3], the court emphasized that discrimination against disabled individuals can be established through discriminatory intent, treatment, or significant discriminatory effect [Ryan v. Ramsey](#) . Additionally, courts have recognized that the FHA's provisions are to be construed broadly to ensure that disabled individuals are not excluded from housing opportunities due to unnecessary barriers ([Ryan v. Ramsey, 936 F.Supp. 417 \(1996\)](#)) [5].

Negative Treatment of ([Swanston v. City of Plano, Texas, 557 F.Supp.3d 781 \(2021\)](#)) [6]

It is important to note that [Swanston v. City of Plano, Texas](#) , which discusses the broad and inclusive scope of the FHA, was vacated and remanded by the Fifth Circuit in [Swanston v. City of Plano, Texas](#) , on November 20, 2023. Therefore, any reliance on Swanston should be considered in light of its subsequent treatment [Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#) .

In summary, under ([Swanston v. City of Plano, Texas, 557 F.Supp.3d 781 \(2021\)](#)) [6](f), a landlord's refusal to remediate hazardous conditions for a disabled tenant may constitute a discriminatory housing practice if the remediation is a reasonable accommodation or modification necessary for the tenant's equal enjoyment of the dwelling. This determination depends on the specific facts of the case, including whether the tenant's disability necessitates the requested remediation and whether the landlord's refusal amounts to actual or constructive discrimination.

Commentary about this question

Cause of Action for Handicapped Discrimination in Housing in Violation of the Federal Fair Housing Act [42 U.S.C.A. §§ 3601 et seq.] and Related Federal Statutes

Causes of Action Second Series • 22 Causes of Action 2d 1 (Originally published in 2003)

This legal material examines claims of disability discrimination in housing under the Fair Housing Act (FHA), specifically 42 U.S.C. § 3604(f), and related statutes. It outlines the necessary elements to establish a claim, including the plaintiff's status as disabled, the landlord's knowledge of the disability, the necessity of the accommodation for equal housing use, and the landlord's refusal to grant such

accommodation. The content addresses theories of discrimination such as intentional discrimination, disparate impact, and failure to provide reasonable accommodation. It includes federal case law applying these principles, demonstrating that refusal to remediate hazardous or accessibility-related conditions impacting disabled tenants may constitute discrimination. It also covers the interplay between the FHA, Americans with Disabilities Act, and Rehabilitation Act, and discusses the burden of proof and legal standards applicable in federal courts, including Texas jurisdiction. Thus, it directly relates to discriminatory housing practices based on landlord refusal to address hazardous conditions for disabled tenants under § 3604(f).

APPENDIX 4T. Sample Oppositions to Motions to Dismiss

Housing Discrimination Practice Manual • 3 Housing Discrim. Pr. Man. Appendix 4T

Sections 3604(f)(1) and (f)(2) of 42 U.S.C. § 3604 prohibit landlords from discriminating against individuals with disabilities in the rental of dwellings, including making housing unavailable or denying equal terms, conditions, or privileges of rental. Liability extends beyond initial developers or builders to current owners who knowingly or negligently continue to rent units that fail to comply with applicable accessibility standards. This creates an ongoing duty for landlords to remediate hazardous or inaccessible conditions to avoid exclusion of disabled tenants. Case law supports that refusal to address such deficiencies can constitute discriminatory housing practices under the Fair Housing Act. The statute's prohibitions are construed broadly to effectuate the Act's purpose of eliminating disability-based exclusion, consistent with common law principles imposing landlord duties to maintain safe and lawful premises. Organizational standing does not require the identification of specific individuals, affirming the capacity to challenge policies that deny accessible housing to disabled persons.

§ 11D:8. Three special provisions—Accommodations

Housing Discrimination Law and Litigation • Housing Discrimination Law and Litigation § 11D:8

The legal provisions under 42 U.S.C. § 3604(f)(3)(B) require housing providers, including landlords, to make reasonable accommodations in rules, policies, or services when necessary to afford individuals with disabilities an equal opportunity to use and enjoy their dwelling. This includes modifications that do not impose undue financial or administrative burdens or fundamentally alter the housing provider's operations. Liability for refusal to accommodate can arise even absent intent to discriminate. Essential elements for a claim include the tenant's disability status, landlord's knowledge thereof, the necessity of the accommodation to ensure equal housing use, and the landlord's refusal. Courts have recognized various accommodations, such as permitting service animals or physical unit modifications. The analysis is fact-specific, and accommodations must be reasonable, balancing tenant needs and landlord burdens. The law applies via federal standards, consistent with the Fair Housing Amendments Act and relevant case law, providing a framework relevant to housing discrimination claims in Texas federal and state courts.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. § 3604. Discrimination in the sale or rental of housing and other prohibited practices

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination..."

2. § 100.203 Reasonable modifications of existing premises.**24 CFR § 100.203**

"...(a) It shall be unlawful for any person to refuse to permit, at the expense of a handicapped person, reasonable modifications of existing premises, occupied or to be occupied by a handicapped person, if the proposed modifications may be necessary to afford the handicapped person full enjoyment of the premises of a dwelling. In the case of a rental, the landlord may, where it is reasonable to do so, condition permission for a modification on the renter agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted. The landlord may not increase for handicapped persons any customarily required security deposit. However, where it is necessary in order to ensure with reasonable certainty that funds will be available to pay for the restorations at the end of the tenancy, the landlord may negotiate as part of such a restoration agreement a provision requiring that the tenant pay into an interest bearing escrow account, over a reasonable period, a reasonable amount of money not to exceed the cost of the restorations. The interest in any such account shall accrue to the benefit of the tenant..."

3. Women's Elevated Sober Living L.L.C. v. City of Plano, Texas

United States Court of Appeals, Fifth Circuit. • November 20, 2023 • 86 F.4th 1108 • 2023 WL 8014228

"...III. Under the FHA, it is unlawful "(t)o discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of . a person residing in or intending to reside in that dwelling." 42 U.S.C. S 3604(f)(1)(B). Discrimination includes "a refusal to make reasonable accommodations in rules (or) policies . when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." Id. S 3604(f)(3)(B). In a failure-to-accommodate claim, a plaintiff must demonstrate that (1) the residents of the affected dwelling or home suffer from a disability, (2) they requested an accommodation from the defendant, (3) the requested accommodation was reasonable, and (4) the requested accommodation was necessary to afford the residents equal opportunity to use and enjoy the home. See *Providence Behav. Health v. Grant Rd. Pub. Util. Dist.*, 902 F.3d 448, 459 (5th Cir. 2018). Importantly, the plaintiff bears the burden of proving a violation of the FHA. See *Elderhaven, Inc. v. City of Lubbock*, 98 F.3d 175, 178 (5th Cir. 1996)..."

4. Chavez v. Aber

United States District Court, W.D. Texas, El Paso Division. • August 08, 2015 • 122 F.Supp.3d 581 • 2015 WL 4724807

"...Housing provider that refuses to make decision with respect to requested accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, could be found to have constructively denied the request by "stonewalling" and short-circuiting interactive process required by Fair Housing Act (FHA). Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

"...Under Fair Housing Act (FHA), landlord's denial of a reasonable accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, can be both actual or constructive, as an indeterminate delay has the same effect as an outright denial. Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

"...To prevail on claim under the Fair Housing Act (FHA) that a defendant refused to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, a plaintiff must prove all of the following elements: (1) that the plaintiff or his associate is handicapped within the meaning of FHA, (2) that the defendant knew or should reasonably be expected to know of the disability, (3) that accommodation of the handicap may be necessary to afford the handicapped person an equal opportunity to use and enjoy the dwelling, (4) that the accommodation is reasonable, and (5) that defendant refused to make the requested accommodation. Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

"...b. Plaintiffs have sufficiently pleaded a plausible claim of housing discrimination under 42 U.S.C. SS 3604(f)(1), 3604(f)(2), and 3604(f)(3)(B). Section 3604 of the FHA prohibits discrimination concerning the sale, rental, and financing of housing based on disability. See 42 U.S.C. S 3604; *City of Edmonds v. Oxford House, Inc.*, 514 U.S. 725, 729, 115 S.Ct. 1776, 131 L.Ed.2d 801 (1995). Under S 3604(f)(1) it is unlawful to "discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of (A) that buyer or renter; (B) a person residing in or intending to reside in that dwelling after it is sold, rented, or made available; or (C) any person associated with that buyer or renter." 42 U.S.C. S 3604(f)(1)(A); see also *City of Edmonds*, 514 U.S. at 729, 115 S.Ct. 1776. The FHA further prohibits discrimination "against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with such dwelling, because of a handicap of (A) that person; or (B) a person residing or intending to reside in that dwelling after it is so sold, rented or made available; or (C) any person associated with that person." 42 U.S.C. S 3604(f)(2); see also *Groome Res. Ltd., L.L.C. v. Parish of Jefferson*, 234 F.3d 192, 200 n. 9 (5th Cir.2000). "For the purposes of (S 3604), discrimination includes . a refusal to make reasonable accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." 42 U.S.C. S 3604(f)(3)(B); see also *City of Edmonds*, 514 U.S. at 729, 115 S.Ct. 1776...."

5. Ryan v. Ramsey

United States District Court, S.D. Texas. • August 01, 1996 • 936 F.Supp. 417 • 1996 WL 465325

"...Violation of Fair Housing Act (FHA) provision prohibiting housing discrimination against disabled can be established by showing either discriminatory intent or treatment or significant discriminatory effect. Civil Rights Act of 1968, S 804(f)(1), as amended, 42 U.S.C.A. S 3604(f)(1)...."

"...(2). Consideration of Ryan's Handicap by Defendants. In the message Ramsey left on Ryan's answering machine, Ramsey states that she had experienced problems with the "disability thing" before, with regard to a previous tenant named "Johnny." It can be reasonably inferred from Ramsey's comments in the message that "Johnny's" problem was not an innate inability to pay the rent-instead, it can be inferred that the difficulty

Ramsey experienced with "Johnny" was his wasting his benefits on "drugs and booze and everything else" and otherwise spending the available rent money. Although Ramsey concedes on the message that "that's not the kind of thing that you're likely to do," there is nevertheless a reasonable inference that Ramsey, having had a bad experience with a tenant who received disability benefits, did not wish to rent an apartment to another such tenant. A landlord's past negative experiences with members of a protected class, however, is not a legitimate justification for subsequent discrimination against other members of the protected class. See *Baumgardner v. Secretary, HUD on Behalf of Holley*, 960 F.2d 572, 574-75, 579 (6th Cir.1992). In *Baumgardner*, the Sixth Circuit affirmed a holding that a landlord who refused to rent to males because such persons were "messy and unclean" was guilty of discrimination even though the landlord had in fact experienced such difficulties in the past. *Id.* Applying the *Baumgardner* approach in cases of discrimination against the handicapped is consistent with the FHA's purpose to ensure that such persons are treated as individuals, not on the basis of stereotypes, when being considered for housing. See *Support Ministries for Persons with AIDS, Inc.*, 808 F.Supp. at 130...."

"...b. Ryan's Handicap as a Factor in the Rental Decision .(1). Defendants' Knowledge of Ryan's Handicap. The defendants point out that Ryan, in his statement to the Office of Fair Housing and Equal Opportunity, states that he never told Ramsey that his disability was AIDS and that Ramsey never asked Ryan about his disability. While Ryan may not have told Ramsey that he had AIDS, Ramsey did not need to know the exact nature of Ryan's disability in order to regard him as disabled. In fact, the regulations giving effect to the FHA's prohibition on housing discrimination against the handicapped state that it is unlawful for a landlord to make such an inquiry as to the nature or severity of a prospective tenant's handicap. 24 C.F.R. S 100.202(c)...."

6. **Swanston v. City of Plano, Texas**

United States District Court, E.D. Texas, Sherman Division. • August 27, 2021 • 557 F.Supp.3d 781 • 2021 WL 3847471

"...II. Overview of Applicable Law. "Congress enacted the FHA 'to eradicate discriminatory practices within a sector of our Nation's economy' and to clearly pronounce 'a national commitment to end the unnecessary exclusion of persons with handicaps from the American mainstream.'" *Swanston v. City of Plano, Tex.*, No. 4:19-CV-412, 2020 WL 7080817, at *2 (E.D. Tex. Dec. 3, 2020) (first quoting *Tex. Dep't of Hous. & Cmty. Affs. v. Inclusive Comms. Project, Inc. ("TDHCA")*, 576 U.S. 519, 539, 135 S.Ct. 2507, 192 L.Ed.2d 514 (2015); and then quoting *Groome Res., Ltd., L.L.C. v. Parish of Jefferson*, 234 F.3d 192, 201 (5th Cir. 2000)). Under the FHA, it is unlawful to sell, rent, or otherwise make unavailable or deny "a dwelling to any buyer or renter because of a handicap" of "that buyer or renter"; "a person residing in or intending to reside in that dwelling after it is so sold, rented, or made available"; or "any person associated with that buyer or renter." 42 U.S.C. S 3604(f)(1)(A)-(C). For purposes of this subsection, discrimination includes "a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." *Id.* S 3604(f)(3). "(P)recedent recogniz(es) the FHA's 'broad and inclusive' compass"-accordingly, courts afford the provisions of the statutory scheme "a 'generous construction.'" *City of Edmonds v. Oxford House, Inc.*, 514 U.S. 725, 731, 115 S.Ct. 1776, 131 L.Ed.2d 801 (1995) (quoting *Trafficante v. Metro. Life Ins. Co.*, 409 U.S. 205, 209, 212, 93 S.Ct. 364, 34 L.Ed.2d 415 (1972))...."

7. **Heinert v. Wichita Falls Housing Authority**

Court of Appeals of Texas, Amarillo. • July 29, 2014 • 441 S.W.3d 810 • 2014 WL 3747129

"...Reasonable Accommodation: Application of Appropriate Standard. (T)he policy of evicting tenants who violate provisions of their lease does not prevent disabled tenants from using the premises because of their disability.

Rather, these tenants are prevented from using the premises because they violated their lease. There is thus no link between this policy and (the tenant's) disability...."

"...As a general rule, federal laws requiring reasonable accommodations for the disabled all require a causal nexus between the plaintiff's disability and the underlying basis for terminating the tenancy before the duty to consider a reasonable accommodation arises. Fair Housing Act, S 804(f)(1)(A), 42 U.S.C.A. S 3604(f)(1)(A)...."

"...The general concept of the reasonable accommodation doctrine is that, at times, a landlord may be required to make modifications to his policy, practices, or property for a disabled tenant, when doing so would give the tenant an equal opportunity to use and enjoy a dwelling. Fair Housing Act, S 804(f)(1)(A), 42 U.S.C.A. S 3604(f)(1)(A)...."

"...The concept of reasonable accommodation in a landlord and tenant dispute requires a balancing of the interest of and benefit to the disabled individual against the interest of and burden to the Public Housing Authority in making such accommodations. Fair Housing Act, S 804(f)(1)(A), 42 U.S.C.A. S 3604(f)(1)(A)...."

8. Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.

United States District Court, W.D. Texas, Austin Division. • June 23, 2020 • 468 F.Supp.3d 800 • 2020 WL 3440569

"...a. Intentional Discrimination: S 3604(f)(1). Here, there is no showing that Defendant attempted to make the dwelling unavailable to Plaintiffs due to their handicap, i.e. that an adverse action was taken because of Plaintiffs' handicap status. The allegedly adverse actions-the institution of the new escalating fine structure and enforcement thereof-may ultimately make the dwelling unavailable to Harmony Haus residents if the fines continue to accrue, but there is no basis from which the Court could plausibly find that those actions were because of Plaintiffs' status as addicts in recovery. Rather, Defendant appears to have been following this Court's prior Findings of Fact and Conclusions of Law in which the Court wrote that "(e)ach resident is expected to know all relevant deed restrictions-including the parking and noise restrictions-and strictly adhere to them. Parkstone, in turn, is entitled to demand such strict adherence and, of course, may enforce the Declaration through its own enforcement mechanisms." Harmony Haus, 440 F.Supp.3d at 669 (emphasis added). Whether Defendant should have done so during the course of a pandemic is a separate question, treated below under S 3604(f)(3)(B)'s reasonable accommodation framework, but as for intentional discrimination, it appears that Defendant was doing nothing more than following this Court's prior directive in which it counseled that Plaintiffs should know the restrictions and Defendant can demand "strict adherence" to the restrictions. Id. Defendant did not impose the fines because Plaintiffs are handicapped; rather, Defendant imposed the fines because Plaintiffs repeatedly violated the parking restrictions...."

"...a. Intentional Discrimination: S 3604(f)(1). Plaintiffs claim that Defendant engaged in such intentional discrimination through its "new fines and enforcement scheme" as well as its refusal to grant a "reasonable accommodation" during the pandemic. Docket no. 12 at 15. Plaintiffs argue that "Defendant's actions will render the Residence unavailable both to its current Residents" and to any future residents. Id. In its motion to dismiss this claim, Defendant argues that S 3604(f)(1) covers conduct that directly makes a dwelling unavailable, not conduct which may, as a side effect, make it more difficult for the handicapped person to remain in the dwelling. See docket no. 11-1 at 5. Plaintiffs respond that "by imposing an accelerating fine structure, Defendant has specifically targeted (Plaintiffs) and has placed them in a position in which they will have no choice but to close the Residence." Docket no. 12 at 17. In other words, Plaintiffs argue that Defendant "will cause the sober living residence to close, thus directly rendering the housing unavailable." Id...."

"...A defendant's refusal of a requested accommodation, for purposes of provision of Fair Housing Act (FHA) prohibiting refusal to make reasonable accommodation in rules, policies, practices, or services when such

accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, can be both actual or constructive. 42 U.S.C.A. S 3604(f)(3)(B)...."

9. **Robinson v. City of Friendswood**

United States District Court, S.D. Texas, Houston Division. • February 16, 1995 • 890 F.Supp. 616 • 1995 WL 374653

"...Provision of Fair Housing Act (FHA) making it unlawful to discriminate in sale or rental, or otherwise to make unavailable or deny, dwelling to buyer or renter because of handicap applies not only to sellers or landlords, but to sophisticated practices such as enforcing zoning or land use laws that have effect of denying housing to disabled. Civil Rights Act of 1968, S 804(f)(1), as amended, 42 U.S.C.A. S 3604(f)(1)...."

10. **Groome Resources Ltd., L.L.C. v. Parish of Jefferson**

United States Court of Appeals, Fifth Circuit. • November 20, 2000 • 234 F.3d 192 • 2000 WL 1724989

"...A. Purpose of the Fair Housing Amendments Act. These new subsections would also apply to state or local land use and health and safety laws, regulations, practices or decisions which discriminate against individuals with handicaps. While state and local governments have authority to protect safety and health, and to regulate use of land, that authority has sometimes been used to restrict the ability of individuals with handicaps to live in communities. This has been accomplished by such means as the enactment or imposition of health, safety or land-use requirements on congregate living arrangements among non-related persons with disabilities...."

11. **Avalon Residential Care Homes, Inc. v. City of Dallas**

United States District Court, N.D. Texas, Dallas Division. • December 18, 2000 • 130 F.Supp.2d 833 • 2000 WL 33152058

"...B. DEFENDANT'S MOTION FOR SUMMARY JUDGMENT .1. Fair Housing Act Claims. Plaintiff claims that the City's denial of Avalon's application for a SUP constitutes a refusal by the City to make a reasonable accommodation for the handicapped in its zoning policies. Under the FHAA, discrimination on the basis of handicap includes a "refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling." 42 U.S.C. S 3604(f)(3). To determine whether a City's ordinance constitutes a reasonable accommodation of the housing needs of the disabled, the courts must consider how the ordinance operates under the City's overall zoning law. Elderhaven, 98 F.3d at 178. Furthermore, the plaintiff bears the burden of proof on the question of reasonableness by a preponderance of the evidence. Id...."

12. **U.S. v. Forest Dale, Inc.**

United States District Court, N.D. Texas, Dallas Division. • March 05, 1993 • 818 F.Supp. 954 • 1993 WL 127713

"...III. Analysis .Defendants' First Motion for Partial Summary Judgment. The government also argues that Defendants were further obliged to alter the terms of the Occupancy Agreement by the enactment of the 1988 amendments to the Fair Housing Act, effective March 12, 1989, which provide that in the event a person is determined to be handicapped, such person must be provided an opportunity to make reasonable modifications

of the premises at his or her own expense. See 42 U.S.C. S 3604(f)(3)(A). That provision of the Fair Housing Act provides that handicap discrimination prohibited by the Act includes "a refusal to permit, at the expense of the handicapped person, reasonable modifications of existing premises occupied or to be occupied by such person." Id...."

13. § 100.202 General prohibitions against discrimination because of handicap.

24 CFR § 100.202

"...(a) It shall be unlawful to discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of- (1) That buyer or renter; (2) A person residing in or intending to reside in that dwelling after it is so sold, rented, or made available; or (3) Any person associated with that person. (b) It shall be unlawful to discriminate against any person in the terms, conditions, or privileges of the sale or rental of a dwelling, or in the provision of services or facilities in connection with such dwelling, because of a handicap of- (1) That buyer or renter; (2) A person residing in or intending to reside in that dwelling after it is so sold, rented, or made available; or (3) Any person associated with that person. (c) It shall be unlawful to make an inquiry..."

14. 🚩 § 3602. Definitions

42 USCA § 3602

"...As used in this subchapter-- (a) "Secretary" means the Secretary of Housing and Urban Development. (b) "Dwelling" means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof. (c) "Family" includes a single individual. (d) "Person" includes one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in cases under Title 11, receivers, and fiduciaries. (e) "To rent" includes to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant. (f) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of thisf) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of this title...."

Follow-up question

4. Under ADA Title II, does an unreasonable delay in providing a disability accommodation constitute a denial of reasonable accommodation?

Under Title II of the Americans with Disabilities Act (ADA), an unreasonable delay in providing a disability accommodation can constitute a denial of reasonable accommodation. Courts have recognized that public entities have an affirmative obligation to make reasonable accommodations for individuals with disabilities, and failure to do so may amount to discrimination under Title II of the ADA (📌 [Windham v. Harris County, Texas, 875 F.3d 229 \(2017\)](#)) [1]. While Title II does not explicitly define "failure to accommodate," courts have adapted the standard from Title I, which includes the failure to make reasonable accommodations for known limitations as a form of discrimination (📌 [Windham v. Harris County, Texas, 875 F.3d 229 \(2017\)](#)) [1].

Unreasonable Delay as a Denial of Reasonable Accommodation

The Fifth Circuit has acknowledged that delay in providing reasonable accommodations may demonstrate a lack of good faith in the interactive process required under the ADA. Specifically, unreasonable delays in providing accommodations can amount to a failure to accommodate, even if the accommodation is eventually provided. Factors to consider in determining whether a delay is unreasonable include the length of the delay, the reasons for the delay, the complexity of the requested accommodation, and the actions of both the entity and the individual during the delay ([Schilling v. Louisiana Department of Transportation and Development, 662 Fed.Appx. 243 \(2016\)](#)) [2].

In [Strife v. Aldine Independent School District](#) , the court noted that while it has not definitively ruled on whether delay alone constitutes an ADA violation, it has stated that "delay in providing reasonable accommodation may show a lack of good faith in the interactive process" ([Strife v. Aldine Independent School District, 138 F.4th 237 \(2025\)](#)) [3]. Similarly, in [Schilling v. Louisiana Department of Transportation and Development](#) , the court emphasized that unnecessary delays in providing accommodations can result in a violation of the ADA, even if the accommodation is ultimately granted ([Schilling v. Louisiana Department of Transportation and Development, 662 Fed.Appx. 243 \(2016\)](#)) [2]. The Equal Employment Opportunity Commission (EEOC) has also issued enforcement guidance stating that "unnecessary delays can result in a violation of the ADA" ([Schilling v. Louisiana Department of Transportation and Development, 662 Fed.Appx. 243 \(2016\)](#)) [2].

Constructive Denial Through Delay

Courts have also recognized that a constructive denial of accommodation may occur when a public entity fails to make a timely determination after meaningful review of a request. This principle was articulated in [Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.](#) , where the court held that a failure to act promptly after reviewing an accommodation request could be considered a constructive denial ([Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc., 468 F.Supp.3d 800 \(2020\)](#)) [4].

Good Faith in the Interactive Process

The ADA requires entities to engage in an interactive process to determine appropriate accommodations for individuals with disabilities. A lack of good faith in this process, such as obstructing or delaying the

provision of accommodations, can constitute a failure to accommodate under the ADA. Courts have emphasized that entities must meaningfully evaluate accommodation requests in a timely manner to comply with their obligations under the ADA ([Schilling v. Louisiana Department of Transportation and Development](#), 662 Fed.Appx. 243 (2016)) [2].

Limitations on Delay as a Basis for Liability

While unreasonable delays can constitute a denial of reasonable accommodation, courts have also clarified that delay alone does not automatically establish liability under the ADA. For example, in [Schilling v. Louisiana Department of Transportation and Development](#), the Fifth Circuit held that a jury instruction stating that delay alone could be the basis for liability was not warranted. The court emphasized that the ADA does not create a cause of action for failure to engage in the interactive process alone, but rather for failure to accommodate ([Schilling v. Louisiana Department of Transportation and Development](#), 662 Fed.Appx. 243 (2016)) [2]. Similarly, in [Eubank v. Lockhart Independent School District](#), the court found that a delay in formally approving accommodations did not create a sufficient factual issue to avoid summary judgment, particularly when the plaintiff had received accommodations during the relevant period ([Eubank v. Lockhart Independent School District](#), 229 F.Supp.3d 552 (2017)) [5].

Conclusion on Unreasonable Delay and Denial of Accommodation

An unreasonable delay in providing a disability accommodation under Title II of the ADA can constitute a denial of reasonable accommodation if it demonstrates a lack of good faith in the interactive process or amounts to a constructive denial of the requested accommodation. However, courts have also emphasized that delay alone does not automatically establish liability, and the specific circumstances surrounding the delay must be considered, including its length, reasons, and the actions of the parties involved ([Strife v. Aldine Independent School District](#), 138 F.4th 237 (2025)) [3].

Commentary about this question

§ 2:15. When employer is obligated to make reasonable accommodation

Disability Law Compliance Manual • 1 Disability Law Compliance Manual § 2:15

The content addresses the employer's duty under the ADA to provide reasonable accommodations, emphasizing that unreasonable delays in supplying accommodations can constitute a failure to accommodate. It clarifies that such delays may violate the ADA if motivated by discriminatory intent rather than mere negligence. Courts evaluate the reasonableness of delays by considering factors such as length, cause, alternative accommodations offered, and employer good faith. Several federal circuits have recognized that delays may amount to a denial of accommodation. Case law, including recent decisions from the Fifth Circuit, supports the proposition that unjustified delays in accommodation, such as for a service dog, can be actionable. The analysis also discusses the need for an employee to inform the employer of the disability-related accommodation needs and explains the importance of the totality of circumstances in determining whether a delay is unreasonable. This framework aligns with both federal law and case precedents applicable in Texas jurisdiction.

§ 9:43. Denial of benefits, services, programs, or activities

State and Local Government Civil Rights Liability • 4 State and Local Government Civil Rights Liability § 9:43

Title II of the ADA prohibits qualified individuals with disabilities from being excluded or denied benefits, services, programs, or activities by public entities due to their disabilities. It mandates reasonable

modifications to avoid discrimination unless such changes fundamentally alter the nature of the service. Judicial interpretation places the initial burden on the plaintiff to demonstrate that an accommodation is reasonable, after which the defendant must prove unreasonableness, often grounded on excessive cost or undue burden. This framework encompasses a broad spectrum of public services and programs, providing a legal basis for evaluating the reasonableness of accommodations. The principles illustrated align with the concept that delays or denials in providing disability accommodations are addressed within the scope of discrimination under Title II, emphasizing timely and effective modifications by public entities to fulfill statutory requirements.

§ 4:20. Introduction

Employment Discrimination Law, 3d • 1 Employment Discrimination Law § 4:20 (3rd ed.)

This source discusses the substantive requirements under Title I of the ADA and the Rehabilitation Act related to reasonable accommodations for disabilities. It explains that an unreasonable delay in providing a reasonable accommodation can amount to a failure to accommodate, distinguishing such claims from broader allegations of discriminatory treatment. The discussion includes the definition of reasonable accommodations, encompassing modifications to job application processes, work environments, and the enjoyment of employment benefits, as long as these accommodations are job-related and tailored to assist the individual in performing essential job functions. The material clarifies that failure to provide reasonable accommodations is deemed discrimination "because of a disability," requiring no additional proof of discriminatory intent. Although primarily focused on employment under Title I, the principles articulated provide foundational context relevant to assessing accommodations and delays under ADA provisions.*

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. Windham v. Harris County, Texas

United States Court of Appeals, Fifth Circuit. • November 13, 2017 • 875 F.3d 229 • 2017 WL 5245104

"...ANALYSIS .I. Title II of the ADA. Windham attempts to satisfy the third prong on a theory of "failure to accommodate." That theory is expressly codified in Title I of the ADA (governing employment), which defines "discriminat(ion) . on the basis of disability" to include "not making reasonable accommodations (for a disabled employee's) known physical or mental limitations." 42 U.S.C. S 12112(b)(5)(A). Although Title II contains no similarly explicit definition, see 42 U.S.C. SS 12131, 12132, our cases recognize that a public entity's failure reasonably to accommodate the known limitations of persons with disabilities can also constitute disability discrimination under Title II. See Bennett-Nelson v. La. Bd. of Regents, 431 F.3d 448, 454 & n.11 (5th Cir. 2005) ("(Title II) impose(s) upon public entities an affirmative obligation to make reasonable accommodations for disabled individuals." (citing 42 U.S.C. S 12131)); see also Jin Choi v. Univ. of Tex. Health Sci. Ctr. at San Antonio, 633 Fed.Appx. 214, 215 (5th Cir. 2015) (adapting the failure-to-accommodate standard from Title I to Title II); Ball v. LeBlanc, 792 F.3d 584, 596 n.9 (5th Cir. 2015) (same). We have also recognized Title II claims in the specific context of police officers who fail reasonably to accommodate the known limitations of disabled persons they detain...."

"...When a plaintiff fails to request an accommodation in the manner required by Title II of the ADA, he can prevail only by showing that the disability, resulting limitation, and necessary reasonable accommodation were open, obvious, and apparent to the entity's relevant agents. Americans with Disabilities Act of 1990 S 202, 42 U.S.C.A. S 12132...."

"...ANALYSIS .I. Title II of the ADA. A critical component of a Title II claim for failure to accommodate, however, is proof that "the disability and its consequential limitations were known by the (entity providing public services)." Jin Choi, 633 Fed.Appx. at 215 (quoting *Neely v. PSEG Tex., Ltd. P'ship*, 735 F.3d 242, 247 (5th Cir. 2013)); accord *Ball*, 792 F.3d at 596 n.9. Mere knowledge of the disability is not enough; the service provider must also have understood "the limitations (the plaintiff) experienced . as a result of that disability." *Taylor v. Principal Fin. Grp., Inc.*, 93 F.3d 155, 164 (5th Cir. 1996) (emphasis added); accord *Patton v. Jacobs Eng'g Grp., Inc.*, 874 F.3d 437, 444-45, 2017 WL 4784586, at *5 (5th Cir. Oct. 24, 2017); Jin Choi, 633 Fed.Appx. at 216. Otherwise, it would be impossible for the provider to ascertain whether an accommodation is needed at all, much less identify an accommodation that would be reasonable under the circumstances. *Taylor*, 93 F.3d at 164. Thus, because "(t)he ADA does not require clairvoyance," *Hedberg v. Ind. Bell Tel. Co.*, 47 F.3d 928, 934 (7th Cir. 1995), the burden falls on the plaintiff "to specifically identify the disability and resulting limitations," *Taylor*, 93 F.3d at 165, and to request an accommodation in "direct and specific" terms, *Reed v. LePage Bakeries, Inc.*, 244 F.3d 254, 261 (1st Cir. 2001)...."

2. Schilling v. Louisiana Department of Transportation and Development

United States Court of Appeals, Fifth Circuit. • October 04, 2016 • 662 Fed.Appx. 243 • 2016 WL 5795773

"...B. Analysis. Several courts have elaborated that an employer's (or employee's) delay in providing reasonable accommodation may show a lack of good faith in the interactive process. See, e.g., *Beck v. Univ. of Wis. Bd. of Regents*, 75 F.3d 1130, 1135 (7th Cir. 1996) ("A party that obstructs or delays the interactive process is not acting in good faith."). In this way, "unreasonable delay may amount to a failure to provide reasonable accommodations." *Valle-Arce v. P.R. Ports Auth.*, 651 F.3d 190, 200 (1st Cir. 2011). In line with this authority, EEOC enforcement guidance states that "(u)nnecessary delays can result in a violation of the ADA." Equal Emp't Opportunity Comm'n, Enforcement Guidance: Reasonable Accommodation and Undue Hardship Under the Americans with Disabilities Act (2002)...."

"...I. BACKGROUND. 10. Unnecessary delays can result in a violation of the ADA. Delay alone may give rise to liability for failure to accommodate even where a reasonable accommodation ultimately is provided. Factors to consider in determining whether the accommodation was unnecessarily delayed include: the reasons for delay, the length of the delay, how much the employer and the employee contributed to the delay, the employer's actions during the delay, and whether the requested accommodation was simple or complex to provide...."

"...Background: Employee brought action in state court against her employer, Louisiana Department of Transportation and Development, alleging that employer failed to timely provide her requested accommodations for her disability and that she was subjected to hostile work environment in retaliation for requesting accommodations, in violation of Americans with Disabilities Act (ADA). Following removal and jury trial, the United States District Court for the Middle District of Louisiana, 2014 WL 5500402, denied employee's motion to alter judgment, or in alternative, for new trial. Employee appealed. The Court of Appeals held that jury instruction that delay in accommodation alone could be basis of liability for failure to accommodate under ADA was not warranted. Affirmed...."

"...Jury instruction that delay in accommodation alone could be basis of liability for failure to accommodate under ADA was not warranted, in employee's action alleging that her employer, Louisiana Department of

Transportation and Development, violated ADA by failing to timely provide her requested accommodations, even though precedent was not opposed to delay instruction, since precedent did not mandate delay instruction, lack of delay instruction did not impair employee's ability to present her claim to jury, in that she argued during trial that employer's delay violated ADA, and delay instruction was arguably covered by jury instructions as a whole, including instruction that failure by employer to engage in good faith interactive process to accommodate could lead to ADA violation. Americans with Disabilities Act of 1990 S 102, 42 U.S.C.A. S 12112(b)(5)(A); 29 C.F.R. S 1630.2(o)(3)...."

3. *Strife v. Aldine Independent School District*

United States Court of Appeals, Fifth Circuit. • May 16, 2025 • 138 F.4th 237 • 2025 WL 1416073

"...B. Failure to Accommodate. Ultimately, Strife's allegations do not merely concern delay; they intimate a lack of good faith from AISD to meaningfully evaluate her request in an appropriate and timely manner. Recall that the third factor of a failure-to-accommodate claim requires that an employer "make reasonable accommodations" for a known disability. *Amedee*, 953 F.3d at 837 (citation omitted). We have accordingly stated-consistent with our sister circuits-that "delay in providing reasonable accommodation may show a lack of good faith in the interactive process." *Schilling*, 662 F. App'x at 246; see, e.g., *Beck v. Univ. of Wis. Bd. of Regents*, 75 F.3d 1130, 1135 (7th Cir. 1996) ("A party that obstructs or delays the interactive process is not acting in good faith."); *Valle-Arce v. Puerto Rico Ports Auth.*, 651 F.3d 190, 200 (1st Cir. 2011) ("unreasonable delay may amount to a failure to provide reasonable accommodations")...."

"...B. Failure to Accommodate. As explained above, AISD granted Strife's request after a six-month interactive process. The question then is whether that six-month delay, in and of itself, constitutes a failure to accommodate. This court "has discussed only in dicta whether delay alone may constitute an ADA violation." *Schilling v. La. Dep't of Transp. & Dev.*, 662 F. App'x 243, 246-47 (5th Cir. 2016), as revised (Oct. 5, 2016) (per curiam) (citing *Loulseged*, 178 F.3d at 737 n.6). In a footnote to *Loulseged*, we wrote:..."

4. *Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.*

United States District Court, W.D. Texas, Austin Division. • June 23, 2020 • 468 F.Supp.3d 800 • 2020 WL 3440569

"...c. Failure to Accommodate: S 3604(f)(3)(B). Finally, the plaintiff must prove that the defendant "refused" the requested accommodation. Such a denial of the requested accommodation "can be both actual or constructive." *Groome Res.* 234 F.3d at 199. Such "constructive" denial may be found, for instance, where the defendant fails to make a timely determination after meaningful review. *Id.*..."

5. *Eubank v. Lockhart Independent School District*

United States District Court, W.D. Texas, Austin Division. • January 17, 2017 • 229 F.Supp.3d 552 • 2017 WL 187662

"...DISCUSSION .1. ADA & TCHRA Accommodation Claims. The Court disagrees with Plaintiff that the delay in formally approving her accommodations creates a fact issue sufficient to avoid summary judgment. Plaintiff does not seriously dispute that she received accommodations for her ailments at all times relevant to this controversy. Her arguments concerning the delay of formal approval create-at most-a fact issue as to whether the District engaged in the interactive process in good faith. However, the ADA creates a cause of action for failure to

accommodate, not for failure to engage in an interactive process alone. The Seventh Circuit has put the issue succinctly:..."

"...DISCUSSION .1. ADA & TCHRA Accommodation Claims. As the undisputed evidence shows that Plaintiff received her requested accommodations at all times relevant to this dispute, Plaintiff's ADA and TCHRA failure-to-accommodate claims fail as a matter of law. Even if Plaintiff could establish that a delay in formal approval of accommodations that were already informally provided is a violation of the ADA, she has provided no evidence to show that she did not cause the delay. Accordingly, the District is entitled to summary judgment on these claims...."

6. **Swanston v. City of Plano, Texas**

United States District Court, E.D. Texas, Sherman Division. • August 27, 2021 • 557 F.Supp.3d 781 • 2021 WL 3847471

"...b. Reasonableness. The Court looks now to the remaining element, reasonableness. This element is the substantive core of a reasonable-accommodation claim. *Anderson v. City of Blue Ash*, 798 F.3d 338, 362 (6th Cir. 2015). "An accommodation is reasonable if it is both efficacious and proportional to the costs to implement it." *Oconomowoc*, 300 F.3d at 784. Conversely, an accommodation is unreasonable if it imposes "undue financial and administrative burdens" or necessitates a "fundamental alteration in the nature of a program." " *Se. Cmty. Coll. v. Davis*, 442 U.S. 397, 410, 412, 99 S.Ct. 2361, 60 L.Ed.2d 980 (1979); accord *United States v. City of Jackson, Miss.*, 318 F. Supp. 2d 395, 412 (S.D. Miss. 2002), *aff'd*, 359 F.3d 727 (5th Cir. 2004). "When evaluating whether an accommodation would impose an undue burden, courts also weigh the respective costs and benefits of the accommodation to the parties, performing a 'balancing of the parties' needs.' " *Schaw v. Habitat for Humanity of Citrus Cnty., Inc.*, 938 F.3d 1259, 1266-67 (11th Cir. 2019) (quoting *Bhogaita v. Altamonte Heights Condo. Ass'n, Inc.*, 765 F.3d 1277, 1288 (11th Cir. 2014)). As a highly fact-specific inquiry, the reasonableness determination requires this "complex balancing of factors." *Austin v. Town of Farmington*, 826 F.3d 622, 630 (2d Cir. 2016) (Winter, J.); see *Harmony Haus Westlake, LLC v. Parkstone Prop. Owners Ass'n, Inc.*, 440 F. Supp. 3d 654, 667 (W.D. Tex. 2020) ("The question of whether an accommodation is reasonable is a question of fact determined by a close examination of the particular circumstances."), *aff'd in part, vacated in part, rev'd in part*, 851 F. App'x 461 (5th Cir. 2021). And as with the other elements of their..."

"...b. Reasonableness. Worth briefly noting, the disparity between the parties as to the stakes at issue here further confirms the reasonableness of Plaintiffs' request. Plaintiffs' reasonableness argument finds subtle yet powerful support in the benefits that would accrue if the accommodation were granted. When an individual with a SUD cannot adequately address the disorder, the SUD's chronic nature can become an albatross around their neck, even tragically leading them to an early grave. It is all too possible that WESL may literally be the difference between life and death for some. Trial Test. of Dr. John Majer, Feb. 9, 2021. By contrast, Plano offers little, if any, justification for its position on the reasonableness element other than its ipse dixit...."

7. **I.A. v. Seguin Independent School Dist.**

United States District Court, W.D. Texas, San Antonio Division. • July 24, 2012 • 881 F.Supp.2d 770 • 2012 WL 3028350

"...2. whether Seguin's delays and failure to implement various accommodation plans for I.A. constituted bad faith or gross misjudgment. I.A. complains of Seguin's failure to implement a transition plan, a timely mobility plan, a timely Adaptive Physical Education (APE) plan, or a timely evacuation plan. Most of I.A.'s difficulties occurred when he began sixth grade at the Saegert facility and was faced with a number of new challenges and situations there. Although Seguin does not appear to have held a formal transition meeting, the evidence shows that staff from the elementary school and the sixth grade center did communicate regarding at least some of I.A.'s needs.

Although Seguin concedes that there was a delay in providing an APE assessment, it appears that part of the reason for the delay was because Ms. Rhodabeck did not provide the requested form and was not able to attend a meeting earlier...."

8. 🇲🇽 La Unión del Pueblo Entero v. Abbott

United States District Court, W.D. Texas, San Antonio Division. • March 14, 2025 • 770 F.Supp.3d 974 • 2025 WL 865262

"...Failure to Accommodate. Thus, public entities must take affirmative steps to proactively comply with federal disability anti-discrimination mandates regardless of whether individual requests are made. According to the Fifth Circuit:..."

9. Smith v. Harris County, Texas

United States Court of Appeals, Fifth Circuit. • April 15, 2020 • 956 F.3d 311 • 2020 WL 1873205

"...III. In addition to prohibiting discrimination, the ADA and the Rehabilitation Act-unlike Title VI-"impose upon public entities an affirmative obligation to make reasonable accommodations for disabled individuals." Bennett-Nelson v. La. Bd. of Regents, 431 F.3d 448, 454 (5th Cir. 2005); see Tennessee v. Lane, 541 U.S. 509, 531, 124 S.Ct. 1978, 158 L.Ed.2d 820 (2004) (observing that "failure to accommodate persons with disabilities will often have the same practical effect as outright exclusion"). An accommodation is reasonable if "it does not impose undue financial or administrative burdens or 'fundamentally alter the nature of the service, program or activity.'" Cadena, 946 F.3d at 724 (quoting 28 C.F.R. S 35.130(b)(7)). "To succeed on a failure-to-accommodate claim, a plaintiff must prove: (1) he is a qualified individual with a disability; (2) the disability and its consequential limitations were known by the covered entity; and (3) the entity failed to make reasonable accommodations." Ball v. LeBlanc, 792 F.3d 584, 596 n.9 (5th Cir. 2015). Plaintiffs ordinarily satisfy the knowledge element by showing that they identified their disabilities as well as the resulting limitations to a public entity or its employees and requested an accommodation in direct and specific terms. Windham, 875 F.3d at 237. "When a plaintiff fails to request an accommodation in this manner, he can prevail only by showing that 'the disability, resulting limitation, and necessary reasonable accommodation' were 'open, obvious, and apparent' to the entity's relevant agents." Id. (quoting Taylor v. Principal Fin. Grp., Inc., 93 F.3d 155, 165 (5th Cir. 1996))...."

10. Caruso v. Hill Country Mental Health & Development Disabilities Centers

United States District Court, W.D. Texas, San Antonio Division. • September 12, 2025 • --- F.Supp.3d ---- • 2025 WL 2640417

"...B. Reasonable Accommodation Claim. A discrimination claim under the ADA includes a failure to make "reasonable accommodations to the known physical or mental limitations of an otherwise qualified individual with a disability . unless (the) covered entity can demonstrate that the accommodation would impose an undue hardship on the operation of the business of such covered entity." EEOC v. Chevron Phillips Chem. Co., LP, 570 F.3d 606, 614 (5th Cir. 2009) (quoting 42 U.S.C. S 12112(b)(5)(A), which was not amended by ADAAA); accord Mueck, 75 F.4th at 485. "To succeed on a failure-to-accommodate claim, a plaintiff must prove: (1) (s)he is a qualified individual with a disability; (2) the disability and its consequential limitations were known by the covered entity; and (3) the entity failed to make reasonable accommodations." Ball v. LeBlanc, 792 F.3d 584, 596 n.9 (5th Cir.

2015); accord *Neely v. PSEG Tex., Ltd. P'ship*, 735 F.3d 242, 247 (5th Cir. 2013) (discussing such claims after the ADAAA changed some statutory provisions)...."

11. **Steward by next friend Green v. Young**

United States District Court, W.D. Texas, San Antonio Division. • June 17, 2025 • 787 F.Supp.3d 476 • 2025 WL 1836138

"...Budgetary constraints alone are insufficient to establish a fundamental alteration defense to a showing that the state can make reasonable accommodations to avoid discrimination on the basis of disability under Title II of the ADA. Americans with Disabilities Act of 1990 S 202, 42 U.S.C.A. S 12132 et seq...."

12. **Cadena v. El Paso County**

United States Court of Appeals, Fifth Circuit. • January 03, 2020 • 946 F.3d 717 • 2020 WL 39019

"...A plaintiff asserting that a public entity failed to provide reasonable accommodations for participation in programs or activities of a public entity, under the ADA or the Rehabilitation Act, must show that the entity knew of the plaintiff's disability and its consequential limitations, either because the plaintiff requested an accommodation or because the nature of the limitation was open and obvious. Rehabilitation Act of 1973 S 504, 29 U.S.C.A. S 794; Americans with Disabilities Act of 1990 S 202, 42 U.S.C.A. S 12132...."

13. **Bennett v. Calabrian Chemicals Corp.**

United States District Court, E.D. Texas, Beaumont Division. • June 09, 2004 • 324 F.Supp.2d 815 • 2004 WL 1557119

"...In practice, the questions of whether an accommodation is reasonable and whether it creates an undue burden are almost identical in ADA actions. Americans with Disabilities Act of 1990, S 101(9), 42 U.S.C.A. S 12111(9)...."

14. **Green v. Medco Health Solutions of Texas, LLC**

United States District Court, N.D. Texas, Dallas Division. • May 27, 2013 • 947 F.Supp.2d 712 • 2013 WL 2317054

"...3. Forgiving Past Conduct Warranting Immediate Termination. This Court concludes that Plaintiff's December requests for accommodations were untimely and did not excuse her multiple unexcused absences requiring immediate termination. Accordingly, Defendant's failure to consider her requests in the week prior to terminating her was not a violation of the ADA. The Court GRANTS summary judgment to Defendants and DENIES summary judgment to Plaintiffs on the ADA accommodations claim...."

15. **Pickett v. Texas Tech University Health Sciences Center**

United States Court of Appeals, Fifth Circuit. • June 15, 2022 • 37 F.4th 1013 • 2022 WL 2154726

"...To succeed on a failure-to-accommodate claim, under provision of ADA prohibiting denial of or discrimination with respect to public services and programs on account of "disability," a plaintiff must prove: (1) he is a qualified

individual with a "disability"; (2) the "disability" and its consequential limitations were known by the covered entity; and (3) the entity failed to make reasonable accommodations. Americans with Disabilities Act of 1990 S 202, 42 U.S.C.A. S 12132...."

Additional Research on This Topic

16. Carter as next of friend of Carter v. City of Shreveport

United States Court of Appeals, Fifth Circuit. • July 21, 2025 • 144 F.4th 809 • 2025 WL 2025596

"...The failure-to-accommodate theory of disability discrimination augments the last element of a general ADA claim such that discrimination by reason of his disability is established by showing that the disability and its consequential limitations were known by the covered entity, and the entity failed to make reasonable accommodations. Americans with Disabilities Act of 1990 S 2, 42 U.S.C.A. S 12101 et seq...."

17. § 12201. Construction

42 USCA § 12201

"...(a) In general Except as otherwise provided in this chapter, nothing in this chapter shall be construed to apply a lesser standard than the standards applied under title V of the Rehabilitation Act of 1973 (29 U.S.C. 790 et seq.) or the regulations issued by Federal agencies pursuant to such title. (b) Relationship to other laws Nothing in this chapter shall be construed to invalidate or limit the remedies, rights, and procedures of any Federal law or law of any State or political subdivision of any State or jurisdiction that provides greater or equal protection for the rights of individuals with disabilities than are afforded by this chapter. Nothing in this chapter shall be construed to preclude the prohibition of, or the imposition of restrictions on, smoking in places of employment covered by subchapter I, in transportation covered by subchapter II or III, or in places of public accommodation covered..."

"...A covered entity under subchapter I, a public entity under subchapter II, and any person who owns, leases (or leases to), or operates a place of public accommodation under subchapter III, need not provide a reasonable accommodation or a reasonable modification to policies, practices, or procedures to an individual who meets the definition of disability in section 12102(1) of this title solely under subparagraph (C) of such section...."

18. APPENDIX C TO PART 36—GUIDANCE ON ADA REGULATION ON NONDISCRIMINATION ON THE BASIS OF DISABILITY BY PUBLIC ACCOMMODATIONS AND IN COMMERCIAL FACILITIES ORIGINALLY PUBLISHED ON JULY 26, 1991.

28 CFR Pt. 36, App. C

"...Subpart A-General Based upon a careful review of the ADA legislative history, the Department believes that Congress did not intend under title III to impose upon a public accommodation the requirement that it give primary consideration to the request of the individual with a disability. To the contrary, the legislative history demonstrates congressional intent to strongly encourage consulting with persons with disabilities. In its analysis of the ADA's auxiliary aids requirement for public accommodations, the House Education and Labor Committee stated that it "expects" that "public accommodation(s) will consult with the individual with a disability before

providing a particular auxiliary aid or service" (Education and Labor report at 107). Some commenters also cited a different committee statement that used mandatory language as evidence of legislative intent to require primary consideration. However, this statement was made in the context of reasonable accommodations required by title I with respect to employment (Education and Labor report at 67). Thus, the Department finds that strongly encouraging consultation with persons with disabilities, in lieu of mandating primary consideration of their expressed choice, is consistent with congressional intent...."

19. § 12133. Enforcement

42 USCA § 12133

"...The remedies, procedures, and rights set forth in section 794a of Title 29 shall be the remedies, procedures, and rights this subchapter provides to any person alleging discrimination on the basis of disability in violation of section 12132 of this title...."

20. § 12132. Discrimination

42 USCA § 12132

"...Subject to the provisions of this subchapter, no qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity, or be subjected to discrimination by any such entity...."

21. § 12131. Definitions

42 USCA § 12131

"...As used in this subchapter: (1) Public entity The term "public entity" means-- (A) any State or local government; (B) any department, agency, special purpose district, or other instrumentality of a State or States or local government; and (C) the National Railroad Passenger Corporation, and any commuter authority (as defined in section 24102(4) of Title 49). (2) Qualified individual with a disability The term "qualified individual with a disability" means an individual with a disability who, with or without reasonable modifications to rules, policies, or practices, the removal of architectural, communication, or transportation barriers, or the provision of auxiliary aids and services, meets the essential eligibility requirements for the receipt of services or the participation in programs or activities provided by a public entity. The term "qualified individual with a disability" means an individual with a disability who, with or without reasonable modifications to rules, policies, or practices, the removal of architectural, communication, or transportation barriers, or the provision of auxiliary aids and services, meets the essential eligibility requirements for the receipt of services or the participation in programs or activities provided by a public entity...."

22. § 12112. Discrimination

42 USCA § 12112

"...(a) General rule No covered entity shall discriminate against a qualified individual on the basis of disability in regard to job application procedures, the hiring, advancement, or discharge of employees, employee compensation, job training, and other terms, conditions, and privileges of employment. (b) Construction As used in subsection (a), the term "discriminate against a qualified individual on the basis of disability" includes-- (1) limiting, segregating, or classifying a job applicant or employee in a way that adversely affects the opportunities or status of such applicant or employee because of the disability of such applicant or employee; (2) participating in a contractual or other arrangement or relationship that has the effect of subjecting a covered entity's qualified applicant or employee with a disability to the discrimination prohibited by this subchapter (such relationship includes a relationship with an employment or referral agency, labor union, an organization providing fringe benefits to an employee..."

"...As used in subsection (a), the term "discriminate against a qualified individual on the basis of disability" includes-- (5)(A) not making reasonable accommodations to the known physical or mental limitations of an otherwise qualified individual with a disability who is an applicant or employee, unless such covered entity can demonstrate that the accommodation would impose an undue hardship on the operation of the business of such covered entity; or..."

Follow-up question

5. Is an unreasonable delay in providing a modification under ADA Title III treated as an effective denial of accommodation?

An unreasonable delay in providing a modification under ADA Title III can be treated as an effective denial of accommodation when the delay undermines the purpose of the ADA to ensure equal access for individuals with disabilities. The ADA and its implementing regulations emphasize the importance of providing accommodations in a timely manner to avoid discrimination and ensure meaningful access to goods, services, and facilities.

Timely Provision of Accommodations Under ADA Title III

The regulations implementing Title III of the ADA explicitly require that accommodations be provided in a timely manner to ensure equal opportunity for individuals with disabilities. For example, 28 C.F.R. § 36.309 (b)(1) (vi) incorporates the concept of "timely manner" into its language, requiring testing entities to respond promptly to requests for accommodations. The regulation highlights that unreasonable delays, coupled with unnecessary demands for documentation, can result in extended delays that effectively deny equal opportunity or treatment in examination settings for persons with disabilities (28 C.F.R. Pt. 36, App. A) [1]. This principle aligns with the core objective of Title III to provide equal access.

Unreasonable Delay as a Denial of Accommodation

Case law supports the notion that unreasonable delays in providing accommodations may constitute a failure to accommodate under the ADA. In *Schilling v. Louisiana Department of Transportation and Development* , the Fifth Circuit recognized that unnecessary delays could result in a violation of the ADA. The court noted that delay alone may give rise to liability for failure to accommodate, even if the accommodation is ultimately provided. Factors to consider include the length and reasons for the delay, the actions of the entity during the delay, and whether the requested accommodation was simple or complex to provide (*Schilling v. Louisiana Department of Transportation and Development*, 662 Fed.Appx. 243 (2016)) [2]. Similarly, in *Strife v. Aldine Independent School District* , the court acknowledged that unreasonable delays in the interactive process may demonstrate a lack of good faith and amount to a failure to provide reasonable accommodations (*Strife v. Aldine Independent School District*, 138 F.4th 237 (2025)) [3].

Equal Access and Reasonable Modifications

Title III of the ADA prohibits discrimination in the full and equal enjoyment of goods, services, and facilities by individuals with disabilities. Discrimination includes the failure to make reasonable modifications in policies, practices, or procedures when such modifications are necessary to afford access, unless the entity can demonstrate that making such modifications would fundamentally alter the nature of the goods or services (42 U.S.C.A. § 12182) [4]. The Supreme Court in *PGA Tour, Inc. v. Martin* emphasized that the reasonable modification requirement under Title III applies broadly and is not limited to requests that are easy to evaluate (*PGA Tour, Inc. v. Martin*, 532 U.S. 661 (2001)) [5].

Practical Application in Accommodation Requests

The Department of Justice has clarified that access to services, such as examinations, must be offered to individuals with disabilities in as timely a manner as it is offered to individuals without disabilities. Failure to act promptly, especially when coupled with unnecessary procedural barriers, can result in a denial of equal opportunity ([28 C.F.R. Pt. 36, App. A](#)) [1]. This principle is consistent with the broader mandate of the ADA to ensure that individuals with disabilities are not excluded, denied services, or treated differently due to their disabilities ([42 U.S.C.A. § 12182](#)) [4].

Precedential Considerations

While courts have recognized that unreasonable delays may constitute a denial of accommodation, the Fifth Circuit has also noted that jury instructions stating that delay alone constitutes liability under the ADA are not always warranted. In *Schilling*, the court affirmed that delay must be evaluated in the context of good faith efforts and the interactive process ([Schilling v. Louisiana Department of Transportation and Development](#), 662 Fed.Appx. 243 (2016)) [2]. This underscores the importance of assessing the specific circumstances surrounding the delay, including whether the entity acted in good faith to address the accommodation request.

Unreasonable delays in providing modifications under ADA Title III can amount to an effective denial of accommodation when they impede equal access or demonstrate a lack of good faith in the interactive process. Courts and regulations emphasize the necessity of timely accommodations to fulfill the ADA's purpose of ensuring nondiscrimination and equal opportunity for individuals with disabilities.

Commentary about this question

§ 2:15. When employer is obligated to make reasonable accommodation

Disability Law Compliance Manual • 1 Disability Law Compliance Manual § 2:15

An employer's obligation under ADA Title III includes timely provision of reasonable accommodations. Courts recognize that an unreasonable delay in providing accommodations can constitute a constructive denial of the accommodation, potentially violating the ADA. The determination of whether a delay is unreasonable requires consideration of factors such as the delay's length, the reasons for delay, any alternative accommodations offered, and whether the employer acted in good faith or with discriminatory intent. Case law across various circuits illustrates that prolonged or unjustified delays may be actionable. Notably, courts dismiss claims once an accommodation is ultimately provided, but the delay itself can form the basis for a claim. The Fifth Circuit has addressed delay-based accommodation claims, emphasizing that fact-specific inquiries govern whether an employer's delay in accommodation rises to actionable discrimination, including under Texas federal jurisdiction.

Cause of Action for Failure to Make Reasonable Accommodation in Workplace Under Americans with Disabilities Act

Causes of Action Second Series • 48 Causes of Action 2d 137 (Originally published in 2011)

This text provides a detailed analysis of failure-to-accommodate claims under the Americans with Disabilities Act (ADA) Title III and related employment contexts. It addresses employer obligations to provide reasonable accommodations and highlights case law considering delays in providing accommodations, including prolonged delays as potential evidence of failure to accommodate. The discussion includes the interactive process, the reasonableness of accommodations, and circumstances where delays or refusals may constitute effective denials, especially when litigation is required to obtain accommodations. Several cited cases emphasize that unreasonable delays or failure to engage in good

faith can support ADA violations, relevant to Texas federal law. The analysis underscores the burden on plaintiffs to identify reasonable accommodations and the employer's duty to explore and provide such accommodations without undue delay, making it pertinent to understanding whether an unreasonable delay might be treated as a constructive denial under ADA Title III in Texas jurisdiction.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. **APPENDIX A TO PART 36—GUIDANCE ON REVISIONS TO ADA REGULATION ON NONDISCRIMINATION ON THE BASIS OF DISABILITY BY PUBLIC ACCOMMODATIONS AND COMMERCIAL FACILITIES**

28 CFR Pt. 36, App. A

"...The Department also incorporates the NPRM preamble's "timely manner" concept into the new regulatory language at S 36.309(b)(1)(vi). Under this provision, testing entities are required to respond in a timely manner to requests for testing accommodations in order to ensure equal opportunity for persons with disabilities. Testing entities are to ensure that their established process for securing testing accommodations provides applicants with a reasonable opportunity to supplement the testing entities' requests for additional information, if necessary, and still be able to take the test in the same testing cycle. A disability rights organization commented that testing entities should not subject applicants to unreasonable and intrusive requests for information in a process that should provide persons with disabilities effective modifications in a timely manner, fulfilling the core objective of title III to provide equal access. Echoing this perspective, several disability rights organizations and a State government commenter urged that testing entities should not make unreasonably burdensome demands for documentation, particularly where those demands create impediments to receiving accommodations in a timely manner. Access to examinations should be offered to persons with disabilities in as timely a manner as it is offered to persons without disabilities. Failure by a testing entity to act in a timely manner, coupled with seeking unnecessary documentation, could result in such an extended delay that it constitutes a denial of equal opportunity or equal treatment in an examination setting for persons with disabilities...."

"...Section 36.302 of the 1991 title III regulation requires public accommodations to make reasonable modifications in policies, practices, or procedures when such modifications are necessary to afford access to any goods, services, facilities, privileges, advantages, or accommodations, unless the entity can demonstrate that making such modifications would fundamentally alter the nature of such goods, services, facilities, privileges, advantages, or accommodations. Hotels, timeshare resorts, and other places of lodging are subject to this requirement and must make reasonable modifications to reservations policies, practices, or procedures when necessary to ensure that individuals with disabilities are able to reserve accessible hotel rooms with the same efficiency, immediacy, and convenience as those who do not need accessible guest rooms...."

2. **Schilling v. Louisiana Department of Transportation and Development**

United States Court of Appeals, Fifth Circuit. • October 04, 2016 • 662 Fed.Appx. 243 • 2016 WL 5795773

"...I. BACKGROUND. 10. Unnecessary delays can result in a violation of the ADA. Delay alone may give rise to liability for failure to accommodate even where a reasonable accommodation ultimately is provided. Factors to

consider in determining whether the accommodation was unnecessarily delayed include: the reasons for delay, the length of the delay, how much the employer and the employee contributed to the delay, the employer's actions during the delay, and whether the requested accommodation was simple or complex to provide...."

"...B. Analysis. Several courts have elaborated that an employer's (or employee's) delay in providing reasonable accommodation may show a lack of good faith in the interactive process. See, e.g., *Beck v. Univ. of Wis. Bd. of Regents*, 75 F.3d 1130, 1135 (7th Cir. 1996) ("A party that obstructs or delays the interactive process is not acting in good faith."). In this way, "unreasonable delay may amount to a failure to provide reasonable accommodations." *Valle-Arce v. P.R. Ports Auth.*, 651 F.3d 190, 200 (1st Cir. 2011). In line with this authority, EEOC enforcement guidance states that "(u)nnecessary delays can result in a violation of the ADA." Equal Emp't Opportunity Comm'n, Enforcement Guidance: Reasonable Accommodation and Undue Hardship Under the Americans with Disabilities Act (2002)...."

"...Jury instruction that delay in accommodation alone could be basis of liability for failure to accommodate under ADA was not warranted, in employee's action alleging that her employer, Louisiana Department of Transportation and Development, violated ADA by failing to timely provide her requested accommodations, even though precedent was not opposed to delay instruction, since precedent did not mandate delay instruction, lack of delay instruction did not impair employee's ability to present her claim to jury, in that she argued during trial that employer's delay violated ADA, and delay instruction was arguably covered by jury instructions as a whole, including instruction that failure by employer to engage in good faith interactive process to accommodate could lead to ADA violation. Americans with Disabilities Act of 1990 S 102, 42 U.S.C.A. S 12112(b)(5)(A); 29 C.F.R. S 1630.2(o)(3)...."

"...Background: Employee brought action in state court against her employer, Louisiana Department of Transportation and Development, alleging that employer failed to timely provide her requested accommodations for her disability and that she was subjected to hostile work environment in retaliation for requesting accommodations, in violation of Americans with Disabilities Act (ADA). Following removal and jury trial, the United States District Court for the Middle District of Louisiana, 2014 WL 5500402, denied employee's motion to alter judgment, or in alternative, for new trial. Employee appealed. The Court of Appeals held that jury instruction that delay in accommodation alone could be basis of liability for failure to accommodate under ADA was not warranted. Affirmed...."

3. *Strife v. Aldine Independent School District*

United States Court of Appeals, Fifth Circuit. • May 16, 2025 • 138 F.4th 237 • 2025 WL 1416073

"...B. Failure to Accommodate. Ultimately, *Strife's* allegations do not merely concern delay; they intimate a lack of good faith from AISD to meaningfully evaluate her request in an appropriate and timely manner. Recall that the third factor of a failure-to-accommodate claim requires that an employer "make reasonable accommodations" for a known disability. *Amedee*, 953 F.3d at 837 (citation omitted). We have accordingly stated-consistent with our sister circuits-that "delay in providing reasonable accommodation may show a lack of good faith in the interactive process." *Schilling*, 662 F. App'x at 246; see, e.g., *Beck v. Univ. of Wis. Bd. of Regents*, 75 F.3d 1130, 1135 (7th Cir. 1996) ("A party that obstructs or delays the interactive process is not acting in good faith."); *Valle-Arce v. Puerto Rico Ports Auth.*, 651 F.3d 190, 200 (1st Cir. 2011) ("unreasonable delay may amount to a failure to provide reasonable accommodations")...."

"...B. Failure to Accommodate. As explained above, AISD granted *Strife's* request after a six-month interactive process. The question then is whether that six-month delay, in and of itself, constitutes a failure to accommodate. This court "has discussed only in dicta whether delay alone may constitute an ADA violation." *Schilling v. La.*

Dep't of Transp. & Dev., 662 F. App'x 243, 246-47 (5th Cir. 2016), as revised (Oct. 5, 2016) (per curiam) (citing Loulseged, 178 F.3d at 737 n.6). In a footnote to Loulseged, we wrote:..."

4. § 12182. Prohibition of discrimination by public accommodations

42 USCA § 12182

"...(a) General rule No individual shall be discriminated against on the basis of disability in the full and equal enjoyment of the goods, services, facilities, privileges, advantages, or accommodations of any place of public accommodation by any person who owns, leases (or leases to), or operates a place of public accommodation. (b) Construction (1) General prohibition (A) Activities (i) Denial of participation It shall be discriminatory to subject an individual or class of individuals on the basis of a disability or disabilities of such individual or class, directly, or through contractual, licensing, or other arrangements, to a denial of the opportunity of the individual or class to participate in or benefit from the goods, services, facilities, privileges, advantages, or accommodations of an entity. (ii) Participation in unequal benefit It shall be discriminatory to afford an individual or class of individuals, on the basis of a disability or disabilities of such..."

"...(b) Construction (2) Specific prohibitions (A) Discrimination For purposes of subsection (a), discrimination includes-- (i) the imposition or application of eligibility criteria that screen out or tend to screen out an individual with a disability or any class of individuals with disabilities from fully and equally enjoying any goods, services, facilities, privileges, advantages, or accommodations, unless such criteria can be shown to be necessary for the provision of the goods, services, facilities, privileges, advantages, or accommodations being offered; For purposes of subsection (a), discrimination includes-- (ii) a failure to make reasonable modifications in policies, practices, or procedures, when such modifications are necessary to afford such goods, services, facilities, privileges, advantages, or accommodations to individuals with disabilities, unless the entity can demonstrate that making such modifications would fundamentally alter the nature of such goods, services, facilities, privileges, advantages, or accommodations; For purposes of subsection (a), discrimination includes-- (iii) a failure to take such steps as may be necessary to ensure that no individual with a disability is excluded, denied services, segregated or otherwise treated differently than other individuals because of the absence of auxiliary aids and services, unless the entity can demonstrate that taking such steps would fundamentally alter the nature of the good, service, facility, privilege, advantage, or accommodation being offered or would result in an undue burden; For purposes of subsection (a), discrimination includes-- (iv) a failure to remove architectural barriers, and communication barriers that are structural in nature, in existing facilities, and transportation barriers in existing vehicles and rail passenger cars used by an establishment for transporting individuals (not including barriers that can only be removed through the retrofitting of vehicles or rail passenger cars by the installation of a hydraulic or other lift), where such removal is readily achievable; and For purposes of subsection (a), discrimination includes-- (v) where an entity can demonstrate that the removal of a barrier under clause (iv) is not readily achievable, a failure to make such goods, services, facilities, privileges, advantages, or accommodations available through alternative methods if such methods are readily achievable. For purposes of subsection (a), discrimination includes--..."

5. PGA Tour, Inc. v. Martin

Supreme Court of the United States • May 29, 2001 • 532 U.S. 661 • 121 S.Ct. 1879

"...Title III of the ADA does not limit the reasonable modification requirement only to requests that are easy to evaluate. Americans with Disabilities Act of 1990, S 302(b)(2)(A)(ii), 42 U.S.C.A. S 12182(b)(2)(A)(ii)...."

"...V. "a failure to make reasonable modifications in policies, practices, or procedures, when such modifications are necessary to afford such goods, services, facilities, privileges, advantages, or accommodations to individuals with disabilities, unless the entity can demonstrate that making such modifications would fundamentally alter the nature of such goods, services, facilities, privileges, advantages, or accommodations." S 12182(b)(2)(A)(ii) (emphasis added)...."

6. **Johnson v. Gambrinus Company/Spoetzl Brewery**

United States Court of Appeals, Fifth Circuit. • June 25, 1997 • 116 F.3d 1052 • 1997 WL 348517

"...IV. STANDARDS OF PROOF UNDER THE AMERICANS WITH DISABILITIES ACT. While Riel was a Title I reasonable accommodations case, its analysis is easily transferrable to the Title III reasonable modifications context. The language of both provisions is very similar: Title I defines discrimination to include "not making reasonable accommodations . unless (the defendant) can demonstrate that the accommodation would impose an undue hardship." 42 U.S.C. S 12112(b)(5)(A). Title III defines discrimination to include "a failure to make reasonable modifications . unless the entity can demonstrate that making such modifications would fundamentally alter the nature of (the public accommodation)." Id. S 12182(b)(2)(A)(ii). In light of the statutes' parallel language, we find no basis for distinguishing their respective burdens of proof. While Title I provides an undue hardship defense and Title III provides a fundamental alteration defense, fundamental alteration is merely a particular type of undue hardship. See 29 C.F.R. pt. 1630 app., S 1630.2(p). Consequently, while the scope of the affirmative defense under Title III is more narrow than that provided by Title I, the type of proof-that is, proof focusing on the specific circumstances rather than on reasonableness in general-is the same...."

"...IV. STANDARDS OF PROOF UNDER THE AMERICANS WITH DISABILITIES ACT. a failure to make reasonable modifications in policies, practices, or procedures, when such modifications are necessary to afford such goods, services, facilities, privileges, advantages, or accommodations to individuals with disabilities, unless the entity can demonstrate that making such modifications would fundamentally alter the nature of such goods, services, facilities, privileges, advantages, or accommodations. Id. S 12182(b)(2)(A)(ii)...."

"...If plaintiff who alleges discrimination under ADA consisting of failure to make modifications in policies which are necessary to afford certain advantages or accommodations to individuals with disabilities meets burden of showing that requested modification is reasonable, defendant must make requested modification unless defendant pleads and meets its burden of proving that requested modification would fundamentally alter nature of public accommodation; type of evidence that satisfies this burden focuses on specifics of plaintiff's or defendant's circumstances and not on general nature of accommodation. Americans with Disabilities Act of 1990, S 302(a), (b)(2)(A)(ii), 42 U.S.C.A. S 12182(a), (b)(2)(A)(ii); 28 C.F.R. S 36.302(c)(1)...."

7. **Eubank v. Lockhart Independent School District**

United States District Court, W.D. Texas, Austin Division. • January 17, 2017 • 229 F.Supp.3d 552 • 2017 WL 187662

"...DISCUSSION .1. ADA & TCHRA Accommodation Claims. As the undisputed evidence shows that Plaintiff received her requested accommodations at all times relevant to this dispute, Plaintiff's ADA and TCHRA failure-to-accommodate claims fail as a matter of law. Even if Plaintiff could establish that a delay in formal approval of

accommodations that were already informally provided is a violation of the ADA, she has provided no evidence to show that she did not cause the delay. Accordingly, the District is entitled to summary judgment on these claims...."

8. Steward by next friend Green v. Young

United States District Court, W.D. Texas, San Antonio Division. • June 17, 2025 • 787 F.Supp.3d 476 • 2025 WL 1836138

"...That a requested modification in policies, practices, or procedures to avoid discrimination under Title II of the ADA advances legal mandates, or aligns with the jurisdiction's own policy or with nationally recognized practices, is evidence that the modification is reasonable, for purposes of a claim that the state violated Title II of the ADA, by failing to provide individuals with intellectual or developmental disabilities (IDD) with community-based services. Americans with Disabilities Act of 1990 S 202, 42 U.S.C.A. S 12132 et seq...."

9. La Unión del Pueblo Entero v. Abbott

United States District Court, W.D. Texas, San Antonio Division. • March 14, 2025 • 770 F.Supp.3d 974 • 2025 WL 865262

"...A public entity's failure to make a reasonable modification may satisfy the "discrimination" and "by reason of disability" prongs of a prima facie case of disability discrimination in the provision of public services in violation of the ADA and Rehabilitation Act. Americans with Disabilities Act of 1990 S 202, 42 U.S.C.A. S 12132; 28 C.F.R. S 35.130(b)(7)(i)...."

"...Failure to Accommodate. Pierce, 128 F. Supp. 3d at 269-70 (emphasis added). Where the individual's disability is "open and obvious," public entities must offer reasonable modifications even in the absence of individualized requests. Robertson, 500 F.3d at 1197 (citing Kiman v. New Hampshire Dep't of Corr., 451 F.3d 274, 283 (1st Cir. 2006))...."

10. Van Velzor v. City of Burleson

United States District Court, N.D. Texas, Dallas Division. • September 04, 2014 • 43 F.Supp.3d 746 • 2014 WL 4375672

"...2. ADA Standards. In addition to bringing claims for denials of benefits or other forms of discrimination, disabled persons can also bring "reasonable accommodation" claims under the ADA. The regulations implementing the ADA require that "(a) public entity shall make reasonable modifications in policies, practices, or procedures when the modifications are necessary to avoid discrimination on the basis of disability, unless the public entity can demonstrate that making the modifications would fundamentally alter the nature of the service, program, or activity." 28 C.F.R. S 35.130(b)(7). If modifications are necessary to avoid discrimination, the ADA and Rehabilitation Act "impose upon public entities an affirmative obligation to make reasonable accommodations for disabled individuals. Where a defendant fails to meet this affirmative obligation, the cause of that failure is irrelevant." Bennett-Nelson v. Louisiana Board of Regents, 431 F.3d 448, 454-55 (5th Cir.2005) (internal citation omitted), cert. denied, 547 U.S. 1098, 126 S.Ct. 1888, 164 L.Ed.2d 568 (2006). The accommodation must be sufficient to provide a disabled person "meaningful access to the benefit" or service offered by a public entity. See Alexander v. Choate, 469 U.S. 287, 301, 105 S.Ct. 712, 83 L.Ed.2d 661 (1985). If the court finds that an accommodation is required to prevent discrimination, the court must then determine whether the requested accommodation is "reasonable," or whether it would impose "undue financial or administrative burdens" or require a "fundamental alteration in the nature of the program." Bennett-Nelson, 431 F.3d at 455 n. 12 (quoting School

Board of Nassau County v. Arline, 480 U.S. 273, 288 n. 17, 107 S.Ct. 1123, 94 L.Ed.2d 307 (1987)) (internal quotation marks omitted). In this regard, it is sufficient that the plaintiff " 'suggest the existence of a plausible accommodation, the costs of which, facially, do not clearly exceed its benefits.' " Henrietta D. v. Bloomberg, 331 F.3d 261, 280 (2d Cir.2003) (quoting Borkowski v. Valley Central School District, 63 F.3d 131,..."

11. **Frame v. City of Arlington**

United States Court of Appeals, Fifth Circuit. • September 15, 2011 • 657 F.3d 215 • 2011 WL 4089778

"...Title II of the ADA's Title II, which prohibits disability discrimination in the provision of public services, imposes an obligation to accommodate, or a reasonable modification requirement. Americans with Disabilities Act of 1990, S 202, 42 U.S.C.A. S 12132...."

12. **Cadena v. El Paso County**

United States Court of Appeals, Fifth Circuit. • January 03, 2020 • 946 F.3d 717 • 2020 WL 39019

"...III .A. ADA Claim. These facts are analogous to those in Delano-Pyle and Perez, in which defendants continued to refuse the requested accommodation despite indications that further accommodation was necessary. Delano-Pyle, 302 F.3d at 575-76; Perez, 624 F. App'x at 185. By contrast, this was not a situation in which there was "confusion amongst the . staff as to the procedure for" obtaining the requested accommodations. Back v. Tex. Dep't of Criminal Justice Institutional Div., 684 F. App'x 356, 358 (5th Cir. 2017) (affirming a grant of summary judgment when a denial of leg braces and similar medical equipment was the result of negligence and confusion rather than being intentional). The County clearly had wheelchairs at its disposal because Cadena was admitted in a wheelchair and she was allowed to use one to travel to the clinic on her first day. A jury could find, therefore, that its ongoing refusal to let her use a wheelchair or to otherwise modify its policies was intentional...."

13. **Windham v. Harris County, Texas**

United States Court of Appeals, Fifth Circuit. • November 13, 2017 • 875 F.3d 229 • 2017 WL 5245104

"...ANALYSIS .I. Title II of the ADA. As a result, Windham cannot avail himself of the narrow exception applicable only to people whose disabilities, limitations, and necessary accommodations are "open, obvious, and apparent." Taylor, 93 F.3d at 165. He instead falls within the generally applicable rule that "(i)f the (plaintiff) fails to request an accommodation, the (public entity) cannot be held liable for failing to provide one." Id. Because the record contains no evidence that Windham requested an accommodation, we affirm the district court's grant of summary judgment for the County on the ADA claim...."

14. **Bennett v. Calabrian Chemicals Corp.**

United States District Court, E.D. Texas, Beaumont Division. • June 09, 2004 • 324 F.Supp.2d 815 • 2004 WL 1557119

"...In practice, the questions of whether an accommodation is reasonable and whether it creates an undue burden are almost identical in ADA actions. Americans with Disabilities Act of 1990, S 101(9), 42 U.S.C.A. S 12111(9)...."

15. APPENDIX A TO PART 35—GUIDANCE TO REVISIONS TO ADA REGULATION ON NONDISCRIMINATION ON THE BASIS OF DISABILITY IN STATE AND LOCAL GOVERNMENT SERVICES

28 CFR Pt. 35, App. A

"...Compliance date. When the ADA was enacted, the effective dates for various provisions were delayed in order to provide time for covered entities to become familiar with their new obligations. Titles II and III of the ADA generally became effective on January 26, 1992, six months after the regulations were published. See 42 U.S.C. 12131 note; 42 U.S.C. 12181 note. New construction under title II and alterations under either title II or title III had to comply with the design standards on that date. See 42 U.S.C. 12183(a)(1). For new construction under title III, the requirements applied to facilities designed and constructed for first occupancy after January 26, 1993-18 months after the 1991 Standards were published by the Department. In the NPRM, the Department proposed to amend S 35.151(c)(1) by revising the current language to limit the application of the 1991 standards to facilities on which construction commences within six months of the final rule adopting revised standards. The NPRM also proposed adding paragraph (c)(2) to S 35.151, which states that facilities on which construction commences on or after the date six months following the effective date of the final rule shall comply with the proposed standards adopted by that rule...."

Additional Research on This Topic

16. § 12201. Construction

42 USCA § 12201

"...(a) In general Except as otherwise provided in this chapter, nothing in this chapter shall be construed to apply a lesser standard than the standards applied under title V of the Rehabilitation Act of 1973 (29 U.S.C. 790 et seq.) or the regulations issued by Federal agencies pursuant to such title. (b) Relationship to other laws Nothing in this chapter shall be construed to invalidate or limit the remedies, rights, and procedures of any Federal law or law of any State or political subdivision of any State or jurisdiction that provides greater or equal protection for the rights of individuals with disabilities than are afforded by this chapter. Nothing in this chapter shall be construed to preclude the prohibition of, or the imposition of restrictions on, smoking in places of employment covered by subchapter I, in transportation covered by subchapter II or III, or in places of public accommodation covered..."

"...A covered entity under subchapter I, a public entity under subchapter II, and any person who owns, leases (or leases to), or operates a place of public accommodation under subchapter III, need not provide a reasonable accommodation or a reasonable modification to policies, practices, or procedures to an individual who meets the definition of disability in section 12102(1) of this title solely under subparagraph (C) of such section...."

17. Caruso v. Hill Country Mental Health & Development Disabilities Centers

United States District Court, W.D. Texas, San Antonio Division. • September 12, 2025 • --- F.Supp.3d ---- • 2025 WL 2640417

"...B. Reasonable Accommodation Claim. A discrimination claim under the ADA includes a failure to make "reasonable accommodations to the known physical or mental limitations of an otherwise qualified individual with a disability . unless (the) covered entity can demonstrate that the accommodation would impose an undue hardship on the operation of the business of such covered entity." EEOC v. Chevron Phillips Chem. Co., LP, 570 F.3d 606, 614 (5th Cir. 2009) (quoting 42 U.S.C. S 12112(b)(5)(A), which was not amended by ADAAA); accord Mueck, 75 F.4th at 485. "To succeed on a failure-to-accommodate claim, a plaintiff must prove: (1) (s)he is a qualified individual with a disability; (2) the disability and its consequential limitations were known by the covered entity; and (3) the entity failed to make reasonable accommodations." Ball v. LeBlanc, 792 F.3d 584, 596 n.9 (5th Cir. 2015); accord Neely v. PSEG Tex., Ltd. P'ship, 735 F.3d 242, 247 (5th Cir. 2013) (discussing such claims after the ADAAA changed some statutory provisions)...."

18. Pickett v. Texas Tech University Health Sciences Center

United States Court of Appeals, Fifth Circuit. • June 15, 2022 • 37 F.4th 1013 • 2022 WL 2154726

"...Public universities are obliged to carefully weigh whether requested accommodations are feasible and effective, for purpose of failure-to-accommodate claim under provision of ADA prohibiting denial of or discrimination with respect to public services and programs on account of "disability." Americans with Disabilities Act of 1990 S 202, 42 U.S.C.A. S 12132...."

19. § 12133. Enforcement

42 USCA § 12133

"...The remedies, procedures, and rights set forth in section 794a of Title 29 shall be the remedies, procedures, and rights this subchapter provides to any person alleging discrimination on the basis of disability in violation of section 12132 of this title...."

20. 🚩 § 12132. Discrimination

42 USCA § 12132

"...Subject to the provisions of this subchapter, no qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity, or be subjected to discrimination by any such entity...."

21. 🚩 § 35.130 General prohibitions against discrimination.

28 CFR § 35.130

"...(a) No qualified individual with a disability shall, on the basis of disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity, or be subjected to discrimination by any public entity. (b)(1) A public entity, in providing any aid, benefit, or service, may not, directly or through

contractual, licensing, or other arrangements, on the basis of disability- (i) Deny a qualified individual with a disability the opportunity to participate in or benefit from the aid, benefit, or service; (ii) Afford a qualified individual with a disability an opportunity to participate in or benefit from the aid, benefit, or service that is not equal to that afforded others; (iii) Provide a qualified individual with a disability with an aid, benefit, or service that is not as effective in affording equal opportunity to obtain the same result, to gain the same..."

"...(7)(i) A public entity shall make reasonable modifications in policies, practices, or procedures when the modifications are necessary to avoid discrimination on the basis of disability, unless the public entity can demonstrate that making the modifications would fundamentally alter the nature of the service, program, or activity. ..."

Follow-up question

6. Have HUD or DOJ enforcement actions treated each day of noncompliance with a fair housing accommodation requirement as a separate violation for penalty purposes?

HUD and DOJ enforcement actions under the Fair Housing Act (FHA) have not treated each day of noncompliance with a fair housing accommodation requirement as a separate violation for penalty purposes. Instead, the applicable regulations and case law indicate that ongoing discriminatory conditions or delayed accommodations are generally treated as a single, continuous discriminatory housing practice rather than separate daily violations.

Definition of Separate and Distinct Discriminatory Housing Practices

Under [24 C.F.R. § 180.671](#) (b), a "separate and distinct discriminatory housing practice" is defined as "a single, continuous uninterrupted transaction or occurrence that violates section 804, 805, 806 or 818 of the Fair Housing Act." The regulation explicitly states that even if such a transaction or occurrence violates multiple provisions of the FHA, violates a provision more than once, or affects the fair housing rights of multiple individuals, it constitutes only one separate and distinct discriminatory housing practice ([24 C.F.R. § 180.671](#)) [1]. This definition suggests that ongoing discriminatory conditions or delayed accommodations are not treated as separate violations for each day of noncompliance but rather as a single continuous violation.

Constructive Denial and Delayed Accommodations

Case law under the FHA has established that a violation occurs when a disabled resident is first denied a reasonable accommodation, whether the denial is actual or constructive. Courts have recognized that an indeterminate delay in providing a reasonable accommodation can have the same effect as an outright denial. For example, in [Groome Resources Ltd., L.L.C. v. Parish of Jefferson](#), the Fifth Circuit held that "a violation occurs when the disabled resident is first denied a reasonable accommodation, irrespective of the remedies granted in subsequent proceedings," and that "an indeterminate delay has the same effect as an outright denial" ([Groome Resources Ltd., L.L.C. v. Parish of Jefferson](#), [234 F.3d 192 \(2000\)](#)) [2]. Similarly, in [Chavez v. Aber](#), the court noted that unreasonable delays in responding to accommodation requests may amount to a denial under the FHA ([Chavez v. Aber](#), [122 F.Supp.3d 581 \(2015\)](#)) [3].

These cases emphasize that the focus of enforcement actions under the FHA is on the initial denial or delay of a reasonable accommodation, rather than treating each day of noncompliance as a separate violation.

Penalty Assessment for Multiple Violations

While [24 C.F.R. § 180.671](#) (e) allows for separate civil penalties to be assessed against a respondent for each "separate and distinct discriminatory housing practice," this provision applies only when multiple distinct violations are established. It does not suggest that ongoing noncompliance with a single accommodation requirement constitutes multiple violations for penalty purposes ([24 C.F.R. § 180.671](#)) [1].

Negative Treatment of [Swanston v. City of Plano, Texas](#)

It is important to note that the case  [Swanston v. City of Plano, Texas](#), which addressed failure-to-accommodate claims under the FHA, was vacated and remanded by the Fifth Circuit in [Women's Elevated Sober Living L.L.C. v. City of Plano, Texas](#) on November 20, 2023. Therefore, any reliance on Swanston should be approached with caution, as its precedential value has been affected ( [Swanston v. City of Plano, Texas](#), 557 F.Supp.3d 781 (2021)) [4].

In summary, HUD and DOJ enforcement actions under the FHA generally treat ongoing discriminatory conditions or delayed accommodations as single, continuous violations rather than separate daily violations. This approach is consistent with the regulatory definition of a "separate and distinct discriminatory housing practice" and case law addressing constructive denials and delays in reasonable accommodations.

Commentary about this question

APPENDIX 7A. Sample Consent Decrees

Housing Discrimination Practice Manual • 4 Housing Discrim. Pr. Man. Appendix 7A

This legal text outlines HUD enforcement efforts and a conciliation agreement involving the State of Texas and related agencies regarding alleged violations of the Fair Housing Act and the administration of Community Development Block Grant funds, including disaster recovery allocations. It addresses HUD's role and oversight in ensuring compliance with fair housing obligations under federal law, including affirmation of fair housing duties and analysis of impediments. The agreement includes commitments to monitoring, reporting, and corrective actions, as well as ongoing collaboration with HUD. Although this agreement is not a direct enforcement action discussing the imposition of penalties, it reflects HUD's approach in addressing ongoing noncompliance and administrative obligations, illustrating mechanisms for resolving alleged violations involving extended or continuing compliance issues within the Texas jurisdiction under federal Fair Housing Act provisions. It does not specifically state whether each day of noncompliance is treated as a separate violation for penalty purposes.

APPENDIX 4T. Sample Oppositions to Motions to Dismiss

Housing Discrimination Practice Manual • 3 Housing Discrim. Pr. Man. Appendix 4T

The legal analysis discusses enforcement and interpretive practices under the Fair Housing Act (FHA), focusing on discriminatory acts, including predatory lending and discriminatory insurance practices, which may be ongoing. It addresses HUD's regulatory framework for affirmatively furthering fair housing (AFFH) and the role of HUD and DOJ in enforcing compliance through grant conditions. The discussion covers the broad construction of discrimination under sections 804 and 805, recognizing that discriminatory practices causing ongoing harm—such as delayed or denied accommodations—are actionable. The document also explains that HUD regulations treat imminent discriminatory injury as sufficient for claims without requiring actual loss to have occurred. While it does not specifically state that each day of noncompliance constitutes a separate violation for penalty purposes, the analysis highlights HUD's consideration of continuous and systemic discriminatory conditions in enforcement actions. The context is federal law applicable to Texas jurisdictions given FHA's nationwide applicability and HUD/DOJ's federal enforcement authority.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. § 180.671 Assessing civil penalties for Fair Housing Act cases.

24 CFR § 180.671

"...(a) Amounts. The ALJ may assess a civil penalty against any respondent under S 180.670(b)(3) for each separate and distinct discriminatory housing practice (as defined in paragraph (b) of this section) that the respondent committed, each civil penalty in an amount not to exceed: (1) \$26,262, if the respondent has not been adjudged in any administrative hearing or civil action permitted under the Fair Housing Act or any State or local fair housing law, or in any licensing or regulatory proceeding conducted by a Federal, State, or local governmental agency, to have committed any prior discriminatory housing practice. (2) \$65,653, if the respondent has been adjudged in any administrative hearing or civil action permitted under the Fair Housing Act, or under any State or local fair housing law, or in any licensing or regulatory proceeding conducted by a Federal, State, or local government agency, to have committed one other discriminatory1) \$26,262, if the respondent has not been adjudged in any administrative hearing or civil action permitted under the Fair Housing Act or any State or local fair housing law, or in any licensing or regulatory proceeding conducted by a Federal, State, or local governmental agency, to have committed any prior discriminatory housing practice.2) \$65,653, if the respondent has been adjudged in any administrative hearing or civil action permitted under the Fair Housing Act, or under any State or local fair housing law, or in any licensing or regulatory proceeding conducted by a Federal, State, or local government agency, to have committed one other discriminatory housing practice and the adjudication was made during the 5-year period preceding the date of filing of the charge.3) \$131,308, if the respondent has been adjudged in any administrative hearings or civil actions permitted under the Fair Housing Act, or under any State or local fair housing law, or in any licensing or regulatory proceeding conducted by a Federal, State, or local government agency, to have committed two or more discriminatory housing practices and the adjudications were made during the 7-year period preceding the date of filing of the charge...."

2. Groome Resources Ltd., L.L.C. v. Parish of Jefferson

United States Court of Appeals, Fifth Circuit. • November 20, 2000 • 234 F.3d 192 • 2000 WL 1724989

"...A denial of a reasonable accommodation in violation of the Fair Housing Act (FHA) can be actual or constructive, as an indeterminate delay has the same effect as an outright denial. Civil Rights Act of 1968, S 804(f)(3)(B), as amended, 42 U.S.C.A. S 3604(f)(3)(B)...."

"...III. RIPENESS. First, as to the "fitness of the issues for judicial decision," we agree with the Court of Appeals for the Fourth Circuit that "(u)nder the Fair Housing Act . a violation occurs when the disabled resident is first denied a reasonable accommodation, irrespective of the remedies granted in subsequent proceedings." Bryant Woods Inn, Inc. v. Howard County, Md. 124 F.3d 597, 602 (4th Cir.1997). This denial can be both actual or constructive, as an indeterminate delay has the same effect as an outright denial. In the instant case, the district court was well within its discretion to decide that a reasonable accommodation was denied by the unjustified delay of the Parish officials...."

"...A violation of the Fair Housing Act (FHA) occurs when a disabled resident is first denied a reasonable accommodation, irrespective of the remedies granted in subsequent proceedings, and, thus, ripeness in the FHA

context must be distinguished from ripeness cases involving unconstitutional takings or other zoning issues. U.S.C.A. Const.Amend. 5; Civil Rights Act of 1968, S 804(f)(3)(B), as amended, 42 U.S.C.A. S 3604(f)(3)(B)...."

"...A. Purpose of the Fair Housing Amendments Act. In the scheme of the FHAA, the reasonable accommodations provision exists as a prohibition on discrimination against the disabled in the purchase, sale, or rental of housing. As set out in S 3604(f)(3)(B), the failure to reasonably accommodate the disabled in the context of housing is, itself, a defined act of discrimination. The question before this court is whether the activity of regulating discrimination against the disabled in the purchase, sale, or rental of housing can be shown to substantially affect interstate commerce, and therefore be upheld as a legitimate exercise of congressional authority...."

3. **Chavez v. Aber**

United States District Court, W.D. Texas, El Paso Division. • August 08, 2015 • 122 F.Supp.3d 581 • 2015 WL 4724807

"...Injury may result when a housing provider unreasonably delays responding to a request for accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, and such delay may amount to a denial under Fair Housing Act (FHA). Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

"...Under Fair Housing Act (FHA), landlord's denial of a reasonable accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, can be both actual or constructive, as an indeterminate delay has the same effect as an outright denial. Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

"...Housing provider that refuses to make decision with respect to requested accommodation in rules, policies, practices, or services, when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling, could be found to have constructively denied the request by "stonewalling" and short-circuiting interactive process required by Fair Housing Act (FHA). Fair Housing Act, SS 802(h), 804(f)(3)(B), 42 U.S.C.A. SS 3602(h), 3604(f)(3)(B)...."

4. **Swanston v. City of Plano, Texas**

United States District Court, E.D. Texas, Sherman Division. • August 27, 2021 • 557 F.Supp.3d 781 • 2021 WL 3847471

"...To establish failure-to-accommodate claim under Fair Housing Act (FHA), disabled persons must show that, but for accommodation, they will likely be denied equal opportunity to enjoy housing of their choice. Civil Rights Act of 1968, S 804, 42 U.S.C.A. S 3604(f)(3)(B)...."

5. **Harmony Haus Westlake, LLC v. Parkstone Property Owners Association, Inc.**

United States District Court, W.D. Texas, Austin Division. • June 23, 2020 • 468 F.Supp.3d 800 • 2020 WL 3440569

"...A defendant's constructive denial of a requested accommodation, for purposes of provision of Fair Housing Act (FHA) prohibiting refusal to make reasonable accommodation in rules, policies, practices, or services when such accommodations may be necessary to afford handicapped persons equal opportunity to use and enjoy dwelling,

may be found where the defendant fails to make a timely determination after meaningful review. 42 U.S.C.A. S 3604(f)(3)(B)...."

"...a. Intentional Discrimination: S 3604(f)(1). Similarly, Plaintiffs raise Castillo as showing that "threatening fines" may constitute making housing unavailable "as a practical matter." Docket no. 12 at 17 (citing Castillo Condo. Ass'n v. U.S. Dep't of Hous. and Urb. Dev., 821 F.3d 92 (1st Cir. 2016)). But in Castillo, the First Circuit did not find that the fines caused the unavailability; rather, the defendant's refusal to allow the plaintiff to keep his service animal caused the unavailability. Castillo, 821 F.3d at 98 ("(S)ubstantial evidence supports the Secretary's finding that the Association's refusal to allow Gimenez to keep an emotional support dog in his condominium unit as a reasonable accommodation for his disability was unlawful. That refusal made Gimenez's home unavailable to him as a practical matter and, thus, violated the (FHA)."). Thus, the FHA violation was the refusal to make a reasonable accommodation, not the mere imposition of fines...."

"...a. Intentional Discrimination: S 3604(f)(1). Here, there is no showing that Defendant attempted to make the dwelling unavailable to Plaintiffs due to their handicap, i.e. that an adverse action was taken because of Plaintiffs' handicap status. The allegedly adverse actions-the institution of the new escalating fine structure and enforcement thereof-may ultimately make the dwelling unavailable to Harmony Haus residents if the fines continue to accrue, but there is no basis from which the Court could plausibly find that those actions were because of Plaintiffs' status as addicts in recovery. Rather, Defendant appears to have been following this Court's prior Findings of Fact and Conclusions of Law in which the Court wrote that "(e)ach resident is expected to know all relevant deed restrictions-including the parking and noise restrictions-and strictly adhere to them. Parkstone, in turn, is entitled to demand such strict adherence and, of course, may enforce the Declaration through its own enforcement mechanisms." Harmony Haus, 440 F.Supp.3d at 669 (emphasis added). Whether Defendant should have done so during the course of a pandemic is a separate question, treated below under S 3604(f)(3)(B)'s reasonable accommodation framework, but as for intentional discrimination, it appears that Defendant was doing nothing more than following this Court's prior directive in which it counseled that Plaintiffs should know the restrictions and Defendant can demand "strict adherence" to the restrictions. Id. Defendant did not impose the fines because Plaintiffs are handicapped; rather, Defendant imposed the fines because Plaintiffs repeatedly violated the parking restrictions...."

6. Robinson v. City of Friendswood

United States District Court, S.D. Texas, Houston Division. • February 16, 1995 • 890 F.Supp. 616 • 1995 WL 374653

"...Plaintiff can prove Fair Housing Amendments Act (FHAA) violations by showing: intentional discrimination; discriminatory impact; or municipality's refusal to make reasonable accommodations. Civil Rights Act of 1968, S 801 et seq., as amended, 42 U.S.C.A. S 3601 et seq...."

7. § 1437f. Low-income housing assistance

42 USCA § 1437f

"...(o) Voucher program (8) Inspection of units by PHAs (G) Enforcement of housing quality standards If assistance amounts under this section for a dwelling unit are abated pursuant to clause (iii) and the owner does not correct the noncompliance within 60 days after the effective date of the determination of noncompliance under clause (i), or such other reasonable longer period as the public housing agency may establish, the agency shall terminate the housing assistance payments contract for the dwelling unit...."

"... (8) Inspection of units by PHAs (G) Enforcement of housing quality standards (i) Determination of noncompliance A dwelling unit that is covered by a housing assistance payments contract under this subsection shall be considered, for purposes of subparagraphs (D) and (F), to be in noncompliance with the housing quality standards under subparagraph (B) if-- (I) the public housing agency or an inspector authorized by the State or unit of local government determines upon inspection of the unit that the unit fails to comply with such standards; A dwelling unit that is covered by a housing assistance payments contract under this subsection shall be considered, for purposes of subparagraphs (D) and (F), to be in noncompliance with the housing quality standards under subparagraph (B) if-- (II) the agency or inspector notifies the owner of the unit in writing of such failure to comply; and A dwelling unit that is covered by a housing assistance payments contract under this subsection shall be considered, for purposes of subparagraphs (D) and (F), to be in noncompliance with the housing quality standards under subparagraph (B) if-- (III) the failure to comply is not corrected-- (aa) in the case of any such failure that is a result of life-threatening conditions, within 24 hours after such notice has been provided; and A dwelling unit that is covered by a housing assistance payments contract under this subsection shall be considered, for purposes of subparagraphs (D) and (F), to be in noncompliance with the housing quality standards under subparagraph (B) if-- (III) the failure to comply is not corrected-- (bb) in the case of any such failure that is a result of non-life-threatening conditions, within 30 days after such notice has been provided or such other reasonable longer period as the public housing agency may establish. A dwelling unit that is covered by a housing assistance payments contract under this subsection shall be considered, for purposes of subparagraphs (D) and (F), to be in noncompliance with the housing quality standards under subparagraph (B) if-- (III) the failure to comply is not corrected--..."

8. APPENDIX C TO PART 36—GUIDANCE ON ADA REGULATION ON NONDISCRIMINATION ON THE BASIS OF DISABILITY BY PUBLIC ACCOMMODATIONS AND IN COMMERCIAL FACILITIES ORIGINALLY PUBLISHED ON JULY 26, 1991.

28 CFR Pt. 36, App. C

"...Subpart A-General Illustrations of practices prohibited by this section are contained in paragraph (c), which is modeled on a similar provision in the regulations issued by the Department of Housing and Urban Development to implement the Fair Housing Act (see 24 CFR 100.400(c)(I)). Prohibited actions may include: This section protects not only individuals who allege a violation of the Act or this part, but also any individuals who support or assist them. This section applies to all investigations or proceedings initiated under the Act or this part without regard to the ultimate resolution of the underlying allegations. Because this section prohibits any act of retaliation or coercion in response to an individual's effort to exercise rights established by the Act and this part (or to support the efforts of another individual), the section applies not only to public accommodations that are otherwise subject to this part, but also to individuals other than public accommodations or to public entities. For example, it would be a violation of the Act and this part for a private individual, e.g., a restaurant customer, to harass or intimidate an individual with a disability in an effort to prevent that individual from patronizing the restaurant. It would, likewise, be a violation of the Act and this part for a public entity to take adverse action against an employee who appeared as a witness on behalf of an individual who sought to enforce the Act...."

"...Almost all commenters supported this interpretation. Two commenters argued that the DOJ requirement is too limiting and would not exempt some buildings that should be exempted because of soil conditions, terrain, and other unusual site conditions. These commenters suggested consistency with HUD's Fair Housing Accessibility Guidelines (56 FR 9472 (1991)), which generally would allow exceptions from accessibility requirements, or allow compliance with less stringent requirements, on sites with slopes exceeding 10%...."

9. Walker v. U.S. Dept. of Housing and Urban Development

United States District Court, N.D. Texas, Dallas Division. • August 04, 1989 • 734 F.Supp. 1231 • 1989 WL 165228

"...2. Housing Mobility Requirements. DHA violated these Housing Mobility Requirements in several distinct ways: its delay in establishing the Mobility Division; its failure to provide adequate resources to perform the Decree's Mobility Requirements; its failure to provide correct information about the program to those interested in S 8 housing; and its delay in providing mobility services to those who did not live in West Dallas project...."

10. Avalon Residential Care Homes, Inc. v. City of Dallas

United States District Court, N.D. Texas, Dallas Division. • December 18, 2000 • 130 F.Supp.2d 833 • 2000 WL 33152058

"...B. DEFENDANT'S MOTION FOR SUMMARY JUDGMENT .1. Fair Housing Act Claims. The Fair Housing Act makes it unlawful to discriminate in the sale or rental, or otherwise make unavailable or deny housing to any prospective buyer or renter because of a handicap of that individual, of a person associated with that individual, or of a resident or potential resident. 42 U.S.C. S 3604(f)(1) (1994 & Supp.2000). Discrimination is defined as "a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such persons equal opportunity to use and enjoy a dwelling." Id. S 3604(f)(3)(B)...."

11. Texas Dept. of Housing and Community Affairs v. Inclusive Communities Project, Inc.

Supreme Court of the United States • June 25, 2015 • 576 U.S. 519 • 135 S.Ct. 2507

"...Governmental entities must not be prevented, through disparate-impact liability under the Fair Housing Act (FHA), from achieving legitimate objectives, such as ensuring compliance with health and safety codes. Civil Rights Act of 1968, SS 804(a), 805(a), 42 U.S.C.A. SS 3604(a), 3605(a)...."

12. Dews v. Town of Sunnyvale, Tex.

United States District Court, N.D. Texas, Dallas Division. • August 01, 2000 • 109 F.Supp.2d 526 • 2000 WL 1159244

"...C. Liability .1. Under The Fair Housing Act. The Fair Housing Act expressly prohibits discrimination in the rental or sale of a dwelling on the basis of race, color, religion, sex, familial status, or national origin. See 42 U.S.C. S 3604(a). The Act has been interpreted to prohibit municipalities from using their zoning powers in a discriminatory manner, that is in a manner which excludes housing for a group of people on the basis of one of the enumerated classifications. See Huntington Branch, NAACP v. Town of Huntington, 844 F.2d 926 (2d Cir.), aff'd 488 U.S. 15, 109 S.Ct. 276, 102 L.Ed.2d 180 (1988) ("Without endorsing the precise analysis of the Court of Appeals, we are satisfied on this record that disparate impact was shown, and that the sole justification proffered to rebut the prima facie case was inadequate."); United States v. City of Black Jack, 372 F.Supp. 319, 327 (E.D.Mo.), rev'd on other grounds , 508 F.2d 1179 (8th Cir.1974), cert. denied , 422 U.S. 1042, 95 S.Ct. 2656, 45 L.Ed.2d 694 (1975). The Fifth Circuit has established that plaintiffs suing under the Fair Housing Act may establish liability by showing intentional discrimination or by showing that the defendant's acts have a significant discriminatory effect. See Simms v. First Gibraltar Bank, 83 F.3d 1546, 1555 (5th Cir.1996) ("a violation of the FHA may be established not only be proof of discriminatory intent, but also by a showing of significant discriminatory effect"); Hanson v. Veterans Admin., 800 F.2d 1381, 1386 (5th Cir.1986) ("a violation of section 804 of the Fair Housing Act may be established not only by proof of discriminatory intent, but also by a showing of a significant discriminatory effect.");

United States v. Mitchell, 580 F.2d 789, 791 (1978) ("(t)he Fair Housing Act prohibits not only direct discrimination but practices with racially discouraging effects")....."

13. **AHF Community Development, LLC v. City of Dallas**

United States District Court, N.D. Texas, Dallas Division. • June 11, 2009 • 633 F.Supp.2d 287 • 2009 WL 1650485

"...Nonprofit fair housing organization's action against city and officials, stemming from purported harassment and intimidation as to organization's housing complex, did not implicate concerns related to availability of housing, as required to maintain claim under Fair Housing Act (FHA); city's code enforcement inspections did not constitute harassment or raid, and city did not act on alleged plan to remove complex through nuisance abatement lawsuit. Fair Housing Act, S 804(a), 42 U.S.C.A. S 3604(a)...."

14. **Ryan v. Ramsey**

United States District Court, S.D. Texas. • August 01, 1996 • 936 F.Supp. 417 • 1996 WL 465325

"...Violation of Fair Housing Act (FHA) provision prohibiting housing discrimination against disabled can be established by showing either discriminatory intent or treatment or significant discriminatory effect. Civil Rights Act of 1968, S 804(f)(1), as amended, 42 U.S.C.A. S 3604(f)(1)...."

15. **§ 3604. Discrimination in the sale or rental of housing and other prohibited practices**

42 USCA § 3604

"...As made applicable by section 3603 of this title and except as exempted by sections 3603(b) and 3607 of this title, it shall be unlawful-- (a) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin. (b) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin. (c) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination3) For purposes of this subsection, discrimination includes-- (C) in connection with the design and construction of covered multifamily dwellings for first occupancy after the date that is 30 months after September 13, 1988, a failure to design and construct those dwellings in such a manner that-- (i) the public use and common use portions of such dwellings are readily accessible to and usable by handicapped persons;..."

Additional Research on This Topic

16. Amendment V. Due Process clause [Text & Notes of Decisions subdivisions I to XIII]

USCA CONST Amend. V-Due Process

17. § 3602. Definitions

42 USCA § 3602

"...As used in this subchapter-- (a) "Secretary" means the Secretary of Housing and Urban Development. (b) "Dwelling" means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof. (c) "Family" includes a single individual. (d) "Person" includes one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in cases under Title 11, receivers, and fiduciaries. (e) "To rent" includes to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant. (f) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of this title. (g) "Discriminatory housing practice" means an act that is unlawful under section 3604, 3605, 3606, or 3617 of this title...."

18. Women's Elevated Sober Living L.L.C. v. City of Plano, Texas

United States Court of Appeals, Fifth Circuit. • November 20, 2023 • 86 F.4th 1108 • 2023 WL 8014228

"...Plaintiff bears burden of proving violation of Fair Housing Act (FHA). 42 U.S.C.A. S 3604(f)(1)(B)...."

19. § 3605. Discrimination in residential real estate-related transactions

42 USCA § 3605

"...(a) In general It shall be unlawful for any person or other entity whose business includes engaging in residential real estate-related transactions to discriminate against any person in making available such a transaction, or in the terms or conditions of such a transaction, because of race, color, religion, sex, handicap, familial status, or national origin. (b) "Residential real estate-related transaction" defined As used in this section, the term "residential real estate-related transaction" means any of the following: (1) The making or purchasing of loans or providing other financial assistance-- (A) for purchasing, constructing, improving, repairing, or maintaining a dwelling; or (B) secured by residential real estate. (2) The selling, brokering, or appraising of residential real property. (c) Appraisal exemption Nothing in this subchapter prohibits a person engaged in the business of furnishing appraisals of real property to take into consideration factors other than race, color, religion, national origin, sex, handicap,...."

"...It shall be unlawful for any person or other entity whose business includes engaging in residential real estate-related transactions to discriminate against any person in making available such a transaction, or in the terms

or conditions of such a transaction, because of race, color, religion, sex, handicap, familial status, or national origin...."

20. § 3617. Interference, coercion, or intimidation

42 USCA § 3617